

The Tamil Nadu Electricity Supply Code, 2004

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State of Tamilnadu- Act

The Tamil Nadu Electricity Supply Code, 2004

TAMILNADU

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The Tamil Nadu Electricity Supply Code, 2004

Rule THE-TAMIL-NADU-ELECTRICITY-SUPPLY-CODE-2004 of 2004

Published on 21 July 2004

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The Tamil Nadu Electricity Supply Code, 2004

Published vide Notification No. TNERC/SC/7/1, dated 21.7.2004 - No. 6 (2)72484/2004

Whereas, under the Electricity Act, 2003 (Central Act 36 of 2003) the State Electricity Regulatory Commission shall specify an Electricity Supply Code to provide for recovery of electricity charges, intervals for billing of electricity charges, disconnection of supply of electricity for non-payment thereof, restoration of supply, tampering, distress or damage to electrical plant, electric lines or meter, entry of distribution licensee or any person acting on his behalf for disconnecting supply and removing the meter, entry for replacing, altering or maintaining electric lines or electrical plant or meter;

And Whereas, the regulations providing for, among others, the Electricity Supply Code shall be subject to the condition of previous publication; and has accordingly undergone previous publication.

Now, Therefore, under section 50 of the said Electricity Act, 2003 read with section 181 thereof and all other powers enabling in that behalf, the Tamil Nadu Electricity Regulatory Commission hereby specifies the following Code:

Chapter 1

Preliminary

1.

Short title and commencement.

(1)

This Code may be called the Tamil Nadu Electricity Supply Code (TNESC).

(2)

It shall come into force on the [date]

[Vide Tamil Nadu Government Gazette, dated the 1st September 2004 and has come into force on the 1st day of September 2004. i.e., the date of publication of the said Code.]

of publication of this Code in the Tamil Nadu Government Gazette.

2.

Definitions.

- In this Code, unless the context otherwise requires -

(a)

"Act" means the Electricity Act, 2003 (Act No.36 of 2003);

(aa)

["Board" means, a State Electricity Board, constituted before the commencement of the Act, under sub-section(l) of section 5 of the Electricity (Supply) Act, 1948 (54 of 1948)]

[Inserted by Commission's Notification No. TNERC/SC/7-4/dated 25.5.2007 (w.e.f. 13.6.2007)]

(b)

"Code" means the Tamil Nadu Electricity Supply Code;

(c)

"Commission" means the Tamil Nadu Electricity Regulatory Commission;

(d)

"Connected Load" means the aggregate of the manufacturer's rating of all equipments connected to the consumer's installation and of all portable equipments and also the capacity of the power source required to test manufactured products and repaired equipment in the installation;

Explanation. - Where the rating is in terms of KVA, it shall be converted to KW by multiplying it by a power factor of 0.9 and where the rating is in terms of HP, it shall be converted to KW by multiplying it by a factor of 0.746.

(e)

"Contracted Load" means the load specified in the agreement between the consumer and the Licensee engaged in the business of supplying electricity to him.

(f)

"Contracted Demand" means the demand specified in the agreement between the consumer and the licensee engaged in the business of supplying electricity to him;

(g)

"Consumer" means any person who is supplied with electricity for his own use by a Licensee, the Government or by any other person engaged in the business of supplying electricity to the public under the Act or any other law for the time being in force and includes any person whose premises are for the time being connected for the purpose of receiving electricity with the works of a licensee, the Government or such other person, as the case may be;

(h)

"Consumer Meter Card" means a card provided at the low tension consumer's premises for the purpose of recording the measurements relating to consumption of electricity and the charges for electricity consumed and other related charges. It shall also serve the purpose of a notice to the consumer of the due dates for payment and notice period for disconnection;

(hh)

["Distribution licensee" means a licensee authorised to operate and maintain a distribution system for supplying electricity to the consumers in his area of supply.]

[Inserted by Commission's Notification No. TNERC/SC/7-4/dated 25.5.2007 (w.e.f. 13.6.2007).]

[i] "Engineer" means an engineer, by whatever name designated, employed by the licensee and is in charge of the local

area of supply and includes any other person duly authorized by him or his superiors, to exercise any power of an engineer under this Code."] [Substituted by Commission's Notification No. TNERC/SC/7-4/ dated 25.5.2007 (w.e.f. 13.6.2007) before substitution it was as under:

(i)

'Engineer' means an engineer, by whatever name dignated, employed by the Licensee possessing such qualification as are approved by the Commission and is in charge o the local area of supply and includes any other person duly authorized by him or his superiors, to exercise any power of an engineer under this code;s]]

(j)

"Extra High Tension (EHT) consumer" means a consumer who obtains supply from the Licensee at Extra High Voltage;

(k)

"High Tension (HT) consumer" means a consumer who obtains supply from the Licensee at High Voltage;

(l)

"Low Tension (LT) consumer" means a consumer who obtains supply from the Licensee at Low or Medium Voltage;

(m)

"Load" means connected load or contracted load, as the case may be;

(n)

"Load Factor" means the ratio of the Average Demand for the month in terms of kilowatts to the maximum demand for the month in terms of kilowatts and the 'Load Factor' shall be calculated to three decimal places and rounded off to two decimal places;

(o)

"Month" unless the context otherwise requires, shall mean a month reckoned according to the British Calendar. With reference to billing and payment, it shall mean the period between the date of meter reading in a particular month and the corresponding date of meter reading of the immediately succeeding or preceding month as the context requires;

(p)

"Occupier" means the person in occupation (whether as owner or otherwise) of the premises where electricity is used or intended to be used;

(pp)

["Person" shall include any company or body Corporate or association or body of individuals, whether incorporated or not, or artificial juridical person.]

[Inserted by Commission's Notification No. TNERC/SC/7-4/dated 25.5.2007 (w.e.f. 13.6.2007).]

(q)

"Power Factor" means the ratio of the real power to the apparent power and average power factor means the ratio of the Kilowatt-hours to the Kilovolt-ampere-hours consumed during the billing month;

(r)

"State Transmission Utility" means the Board or the Government Company specified as such by the State Government:

(s)

"Supply", in relation to electricity, means the sale of electricity to a Licensee or consumer.

Words and expressions used in this Code but not defined either in this Code or the Act or the General Clauses Act, 1897 (Central Act 10 of 1897) shall have the same meanings as understood in the engineering and commercial circles.

Chapter 2

Electricity Charges - Billing and Recovery

3.

Categories of supply.

- Supply of electricity available to the consumer is of the following categories:

(a)

Single-phase 2 wire 240 volts between phase and neutral for supply to a total connected load not exceeding 4,000 watts (including power loads).

(b)

three-phase 4 wire 415 volts between phases and 240 volts between phase and neutral for supply to a total connected load exceeding 4,000 watts but not exceeding a demand of 112 KW.

(c)

The consumer may elect to avail supply under any one of the above categories where the connected load does not exceed 4,000 watts.

(d)

Three-phase 3 wire, 11,000 volts and above between phases for power installation exceeding a demand of 112 KW, the minimum demand however being 63 KVA.

(e)

The consumer shall avail supply at 33 KV and above when the demand is 5 MVA and above.

4.

Charges recoverable by the licensee.

- The charges recoverable by the licensee from the consumers are:

(1)

Tariff related charges, namely:

(i)

The price of electricity supplied by him to the consumer which shall be in accordance with the tariff rates as the Commission may fix, from time to time, for HT supply, LT supply, temporary supply and for different categories of consumers. In case, the [***]

[The word 'temporary' omitted as per Commission's Notification No. TNERC/SC/7-4, dated 25.5.2007 (w.e.f. 13.6.2007).] supply is for construction of residential houses, housing complexes, the tariff shall be commercial tariff till the completion of construction and to be changed to appropriate tariff on completion. Where it is intended to use floor polishing equipments, welding equipments for repairs/maintenance and such other portable equipments temporarily in a premises having permanent supply, such use shall not be treated as temporary supply for the purpose of levying charges. It shall be construed as regular consumption under the permanent supply tariff.

(ii)

Demand charges for HT supply and fixed charges for LT supply shall be payable by the consumer in accordance with the rates as the Commission may fix, from time to time, for different categories of consumers.

(iii)

Disincentive for power factor:

Every consumer shall maintain a power factor:

In case of LT supply, of 0.85 lag, and

In case of HT supply, of 0.90 lag failing which he shall be liable to pay compensation by way of disincentive at such rates as the Commission may declare, from time to time. Likewise, the consumer, who maintains the power factor above a specified level may be rewarded by way of incentive at such rates as the Commission may declare, from time to time, which shall be adjusted in the bill.

(iv)

Additional charges for harmonics dumping Where any equipment installed by a consumer generates harmonics, the consumer shall provide adequate harmonic suppression units to avoid dumping of harmonics into licensee's distribution system and the licensee is at liberty to provide suitable metering equipment to measure the harmonic level pursuant to such harmonic. Where the consumer fails to provide such units, he shall be liable to pay compensation at such rates as the Commission may declare, from time to time.

(v)

The tax or duty, if any, on electricity supplied or consumed as may be levied by the State Government which shall be credited to the Government account as per the directions received from the Government, from time to time.

(vi)

At the time of extension of period of temporary supply, it shall ensure that the advance current consumption (CC) charges are adequate. The CC charges shall be adjusted against the advance CC charges.

(2)

[Miscellaneous charges, namely, -

[Substituted by Notification No. TNERC/SC/7-36 dated 01-07-2014.]

(i)

Capacitor compensation charge

(ii)

Excess demand charge

(iii)

Excess contracted load charge

(iv)

Belated payment surcharge

(v)

Additional security deposit, when so called upon

(vi)

Service/line/structure/equipments shifting charges

(a)

Charges for dismantling temporarily or permanently

(b)

Charges for re-erection in case of temporary dismantling

(vii)

Name transfer charge

(viii)

Reconnection charge

(ix)

Consumer meter card replacement charge

(x)

Dishonored cheque service charge

(xi)

Meter related charges

(xii)

Application registration charge

(xiii)

Service connection charges

(xiv)

Excess demand and excess energy charges during Restriction and Control of supply

(xv)

Charges for restoration of cheque payment facility

(xvi)

Charges for testing of equipments/installations.]

(3)

Minimum charges where applicable.

5.

Miscellaneous charges.

(1)

Capacitor compensation charge:

(a)

No new LT service with a connected load of motors of 3 HP and above or for using welding transformers shall be given unless capacitors of adequate ratings with 1S1 marking are installed; [The licensee shall specify appropriate capacitor ratings for different capacity Motors/welding transformers]

[Inserted by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 w.e.f. 13.6.2007)]

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(b)

In case of existing LT service connections (which are not coming under the purview of power factor incentive/disincentive scheme) with connected load of motors of 3 HP and above or for using welding transformers (irrespective of their rating), the consumer shall install adequate capacitors within a period of two months [(from the date of issue of notice issued by the licensee in this connection]

[Inserted by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 w.e.f. 13.6.2007)]

and shall be liable to pay a compensation charge of ten per cent of the price of electricity supplied to him for the preceding four months of consumption till such time adequate capacitors are installed; and where inadequate capacitors are installed or where some of the capacitors are defective, the ten percent shall be reckoned proportionate to the extent of inadequacy or defect, as the case may be;

(c)

Where it is found that the capacitors installed are either inadequate or defective, the licensee shall, in addition to the levy and collection of capacitor compensation charges, by notice in writing, call upon the consumer to install adequate capacitors or to rectify or to replace the defective capacitors, as the case may be, within two months from the date of notice.

(2)

Excess demand charge: Whenever the consumer exceeds the sanctioned demand, excess demand charge shall be:

(i)

in the case of HT supply, the maximum demand charges for any month shall be based on the KVA demand recorded in that month at the point of supply or such percentage of sanctioned demand as maybe declared by the Commission, from time to time, whichever is higher The exceeded demand shall alone be charged at double the normal rate;

(ii)

in case of LT supply:

(a)

for domestic and agricultural category of service, the excess demand charges shall not be applicable;

(b)

[For other categories of LT services with contracted demand equal to or less than 18.6 KW (25 HP), the excess demand charges shall not be applicable where the connected load is equal to or less than the contracted demand. [[Substituted by Commission's Notification No TNERC/SC/7-4 dated 25.5.2007, (w.e.f 13.6.2007) which before substitution stood as under:

'(b) For other categories of LT services where the contracted demand and connected load is equal to or less than 18.6 KW (25 HP), the excess demand charges shall not be applicable.

Note: Even if a consumer's contracted demand is equal to or less than 18.6 KW (25 HP), or the connected load is more than the contracted demand but less than 18.6 K W (25 HP), as the case may be, the licensee shall install meters with demand recording facility and bring the consumer under the scope of excess demand chargeable category. After installation of the meter, if the recorded demand is in excess of contracted demand, the existing demand, shall, after intimation to the consumer, be revised to the level of recorded demand and all relevant charges applicable for extension of additional demand shall be included in the next bill. No excess demand charge is leviable till such time the licensee installs meter with demand recording facility and bring the consumer under the scope of excess demand chargeable category.]]

Note: For services with contracted demand less than or equal to 18.6 KW (25 HP), whenever the consumer's connected load exceeds the contracted demand, the licensee shall install meters with demand recording facility and bring the consumer under the scope of excess demand chargeable category. After installation of the meter, if the recorded demand is in excess of contracted demand, the existing demand, shall, after intimation to the consumer, be revised to the level of recorded demand and all relevant charges applicable for extension of additional demand shall be included in the next bill. No excess demand charge is leviable till such time the licensee installs meter with demand recording facility and bring the consumer under the scope of excess demand chargeable category.]

(c)

for the remaining LT services other than those service connections covered in (a) and (b) above, when the contracted demand is in excess of 18.6KW (25HP) and for such of those consumers whose contracted demand is less than 18.6 KW (25HP) but opted for having meters with demand recording facility, the excess demand charges shall be, -

(I)

where the recorded demand does not exceed 112 KW, for every KW or part thereof in excess of the sanctioned demand, at the rate of 1% of the total energy charges;

(II)

where the recorded demand exceeds 112KW, for every KW or part thereof in excess of sanctioned demand -

- for the first two occurrences, at the rate of 1 % of the charges for electricity supplied upto 112 KW;

- and 1.5% for every KW or part thereof over and above 112KW,
- and thereafter, that is, the third and subsequent occurrences at the rate of three per cent for every KW or part thereof over and above 112KW.

(III)
where the recorded demand exceeds the sanctioned demand for the second and subsequent times -

(A)
in case the recorded demand has not exceeded 112 KW, the existing load sanction shall, after intimation to the consumer, be revised within one month of the second occurrence to the level of recorded demand and all the relevant charges applicable to the additional load shall be included in the next bill;

(B)
in case the recorded demand has exceeded 112 KW, the existing load sanction shall, after intimation to the consumer, be revised within one month of the second occurrence, to the level of 112 KW and all relevant charges applicable to the additional load shall be included in the next bill; if, however, the recorded demand has exceeded 112KW for the third or more number of times, it is open to the consumer to opt for HT service.

(iii)
in the case of temporary supply, the excess demand charges shall be the difference between the minimum charge for temporary supply computed at the rate notified, for a back period of six months or date of supply whichever is lesser, and the corresponding current consumption charges already recovered from the consumer.

(iv)
[No addition or reduction of load in case of LT service and no addition or reduction of demand in case of HT service, may be sanctioned unless the outstanding dues in the same service connection had been paid.]
[Inserted by Commission's Notification No. TNERC/SC/7-1 dated 22.11.2005 (w.e.f.7.12.2005).]

(3)
Excess contracted load charge: These charges are applicable to the subsidised category of agricultural service connections, which need to be regulated with a view to -

(i)
comply with the contracted load until the cross subsidy from other sources are eliminated and a viable tariff is implemented for agricultural services;

(ii)
comply with the directives of the Government towards restriction on exploitation of ground water for irrigation and environmental constraints.

Accordingly, special provisions have been made in this Code in relation to agricultural service connections as below and they shall remain in force until cross subsidy from other sources / categories are eliminated.

(a)
No electric motor shall be used in agricultural service connections without its manufacturer's name plate indicating its rating/ capacity permanently affixed on it.

(b)
[If, at the time of effecting service connections under Agricultural category, it is found that the assessed capacity is in excess of the capacity applied for by the consumer, the Engineer shall refuse to effect supply. If the intending consumer challenges the decision regarding the assessed capacity of the motor made by the Engineer, he may make an appeal to the next higher officer, furnishing certificate regarding capacity of motor issued by Government /Government Laboratory/any agency accredited/approved by Bureau of Energy Efficiency. The decision of the next higher officer shall be final and binding on the consumer.] [[Substituted by Commission's Notification No TNERC/SC/7-4 dated 25.5.2007, (w.e.f. 13.6.2007) which before substitution stood as under:

'(b) If at the time of effecting service connections under agricultural category, it is found that the assessed capacity is in excess of the capacity applied for by the consumer, the engineer shall refuse to effect supply. If the intending consumer challenges the decision regarding the assessed capacity of the motor made by the engineer, he may make an appeal to the next higher officer, furnishing certificate regarding capacity of motor issued by any agency acceptable to the licensee. The decision of the next higher officer shall be final and binding on the consumer.]]

(c)
If during periodical check or inspection of an existing agricultural service connection by the engineer, it is found that the

name plate of any motor does not show the correct capacity of the motor or filename plate is missing or the rating of such motor as assessed by the engineer authorised in this behalf is in excess of the rating noted in the Test Report, action shall be taken under this Code [to recover the excess contracted load charges on the basis of the assessed capacity of the motor]

[Substituted by Commission's Notification No TNERC/SC/7-4 dated 25.5.2007, (w.e.f.13.6.2007)]

(d)

[If the existing consumer challenges the decision regarding the assessed capacity of tire motor made by the Engineer, a letter may be issued to the consumer asking him to test the motor for its capacity at Government Laboratory or by any other agency accredited by Bureau of Energy Efficiency at the cost of the consumer and produce the test report of such Government Laboratory or agency to the officer concerned within two months from the date of issue of such letter. However, after producing such test report, the charges shall be adjusted to the certified load in the subsequent Consumption Charge bills.] [[Substituted by Commission's Notification No TNERC/SC/7-4 dated 25.5.2007, (w.e.f.13.6.2007) which before substitution stood as under

(d)

If the existing consumer challenges the decision regarding the assessed capacity of the motor made by the engineer, a letter may be issued to the consumer asking him to test the motor for its capacity at Government Laboratory or by any other agency acceptable to the licensee at the cost of the consumer and produce the same to the officer concerned within two months from the date of issue of such letter.]]

The excess contracted load charges for both metered and unmetered supply shall be sixty rupees per HP per month prospectively and as long as the excess contracted load remains connected.

(4)

Belated payment surcharge (BPSC). -

(i)

All bills are to be paid in the case of HT consumers, within the due date specified in the bill and in the case of LT consumers, within the due date and notice period specified in the consumer meter card.

(ii)

[(a) Where any HT consumer neglects to pay any bill by the due date, he shall be liable to pay belated payment surcharge from the day following the due date for payment. Where any LT consumer (except services relating to Public lighting and water supply and other services belonging to Local Bodies) neglects to pay any bill by the last day of the notice period, he shall be liable to pay belated payment surcharge from the day following the last day of the notice period. [[Substituted by Commission's Notification No TNERC/SC/7-7 dated 14.12.2007 (w.e.f.9.1.2008) before substitution it reads as under:

'(i) Where any HT consumer neglects to pay any bill by the due date, he shall be liable to pay belated payment surcharge from the day following the due date for payment. Where any LT consumer neglects to pay any bill by the last day of the notice period, he shall be liable to pay belated payment surcharge from the day following the last day of the notice period. The surcharge shall be for a minimum period of fifteen days and where the delay exceeds fifteen days but does not exceed one month, it shall be for one whole month and where the delay exceeds one month, it shall be for the number of whole months and for any fraction of a month it shall be proportionate to the number of days.]]

(b)

Where the local bodies neglect / fail to pay any bills in respect of LT services for Public Lighting and Public Water Works, and other services of Local Bodies the belated payment surcharge shall be applicable for the payments made beyond 60 days from the date of demand. In case of payment made beyond 60 days from the date of demand, the belated payment surcharge shall be payable from the day following the 60th day of demand.

(c)

The surcharge shall be for a minimum period of fifteen days and where the delay exceeds fifteen days but does not exceed one month, it shall be for the number of whole months, and for any fraction of a month, it shall be proportionate to the number of days.]

(iii)

If the due date in the case of HT consumers and the last day of the notice period in the case of LT consumers falls on a holiday, the surcharge is payable from the day following the next working day.

(iv)

[In the case of LT Consumers (except Local Bodies) the surcharge shall be 1.5% per month for the outstanding arrears towards the price of electricity supplied. In respect of LT services belonging to Local Bodies, the surcharge shall be 0.5% per month for the outstanding arrears towards the price of electricity supplied]

[Substituted by Commission's Notification No TNERC/SC/7-7 dated 14.12.2007 (w.e.f.9.1.2008)]

(v)

[In the case of HT consumers except Local Bodies and Government Departments the surcharge shall be 1.5% per month for the notice period. In the case of Local Bodies and Government Departments, the surcharge shall be 1% per month for the notice period.

[Substituted as per Commission's Notification No TNERC/SC/7-4 dated 25.5.2007 (w.e.f.13.6.2007)]

However for the consumers who are availing of extension of time beyond the notice period up to the end of the due month, on an application to the licensee, the BPSC shall be at 2% per month from the expiry of the due date allowed for payment, for a full month irrespective of the number of days delayed. When no extension of time is granted or the delay continues after the expiry of the extended time, the surcharge shall be at 1.5% per month]

(vi)

In case of sums other than price of electricity supplied which are outstanding, surcharge shall be leviable at the discretion of the licensee at a rate not exceeding 1.5 % per month.

(vii)

In the case of short assessment included in a subsequent bill, surcharge shall accrue in the case of HT consumers, after the due date for the payment of the subsequent bill wherein the short assessment is included and in the case of LT consumers, it shall accrue from the day following the last day of the notice period.

(viii)

In the case of short assessment permitted to be payable in instalments, the surcharge shall accrue only when there is default in the payment schedule and the surcharge shall be worked out from the day following the day on which the instalment fell due and shall be payable along with the amount of instalment due.

(ix)

Where the service connection stands terminated, the amount of security deposit and the interest accrued thereon shall first be adjusted against belated payment surcharge and the remainder, if any, against other dues.

(x)

The belated payment surcharge is payable only on any outstanding amount excluding belated payment surcharge component.

(xi)

The belated payment surcharge shall not be levied on electricity tax and electricity tax shall not be levied on the belated payment surcharge.

[Explanation. - In this regulation and other regulations of this code, the reference to the expression 'HT Consumer' shall be deemed to include a reference to the expression 'EHT consumer' also]

[Inserted by Commission's Notification No. TNERC/SC/7-4/dated 25.5.2007 (w.e.f. 13.6.2007)]

(5)

Additional Security Deposit. -

(i)

The adequacy of security deposit may be reviewed and re-fixed once in a year in case of HT consumers and once in every two years in case of LT consumers taking into account the interest due for credit. Such reviews shall be made in the month of April / May. The rate of interest on the security deposit shall be on the basis of the commission's directive to the licensees in this regard.

(ii)

The adequacy of security deposit shall be based on the periodicity of billing for the respective category.

(a)

For the categories of consumer under monthly billing, the security deposit is equivalent to two times of the monthly average of the electricity charges for the preceding twelve months prior to April.

(b)

For the categories of consumer under bi-monthly billing, the security deposit is equivalent to three times of the monthly average of the electricity charges for the preceding twelve months.

(c)

For the categories of consumer under half-yearly billing, the security deposit is equivalent to seven times of the average charges per month.

(iii)

Interest at Bank rate or more as specified by the Commission shall be calculated and credited to the security deposit accounts of the consumers at the beginning of every financial year i.e. April and the credit available including the interest shall be informed to each consumer before the end of June of every year.

(iv)

If available deposit is less than the revised security deposit, the balance shall be collected as additional security deposit either through a separate notice or by a distinct entry in the consumer meter card for LT services. Thirty days notice period shall be allowed for the payment. If the payment is not received within the above period of thirty days, the service is liable for dis-connection.

(v)

Where, on review, the amount of security deposit held is found to be in excess of the requirement, the excess shall be adjusted against two future demands for the electricity supplied. Where, after such adjustment in future of two demands, there is balance to be refunded, the refund shall be made by cheque before the due date for payment of the third demand.

(vi)

In the event of the consumer failing to pay to the licensee any sum that may become due for payment to the licensee on the dates fixed for payment thereof, the licensee may, in addition to and without prejudice to the other rights of the licensee, appropriate a part or whole of the security deposit and interest thereon towards the sum due from the consumer.

(6)

Service /line, [structure and equipments]

[Inserted by Commission's Notification No TNERC/SC/7-4 dated 25.5.2007 (w.e.f.13.6.2007).]

shifting charge.

(1)

[The cost of shifting service/line, structure and equipments shall be borne by the consumer. The consumer shall pay the estimated cost of shifting in advance in full. The copy of the estimate shall be given to the consumer. The shifting work will be taken up only after the payment is made.

[Substituted by Notification No. TNERC/SC/7-36 dated 01-07-2014.]

The estimate will cover the following:

(i)

Materials dismantled in the old site and reusable shall be used in the new site as far as possible.

(ii)

10% of the present value of the dismantled and reusable materials towards charges for dismantling and charges for loading, unloading, transport to the new site/store.

(iii)

Cost of the new materials required for the shifting work.

(vi)

Add 5% of the cost of new materials towards loading, unloading and transport to new site.

(v)

Add 10% of the present value of all the materials to be erected in the new site towards erection charges.

(vi)

5% of the present value of retrievable scrap materials towards transport charges.

(vii)

Due credit shall be given to the consumer / applicant as below but however limited to the total estimated cost of new work:

(a)

Book value/written down value subject to a minimum of 20% of the cost of retrievable and reusable materials but not used in the new site.

(b)

Scrap value on the retrievable but not reusable materials at not less than 10% of its original value.

(viii)

After completion of the work, a revised estimate shall be prepared with a copy to the consumer based on the actual cost of materials, loading, unloading, transport and erection charges. If the original estimate cost is more than the revised estimate, the balance shall be refunded to the applicant/consumer within 3 months. If the original estimate cost is less than the revised estimate, the difference shall be collected from the applicant/consumer.]

(2)

Temporary dismantling and re-erection or shifting of a service connection within the same premises necessitated due to remodelling of premises will be carried out on payment of the required charges for the same.

(3)

Shifting of an existing service connection involving change in door number or sub-door number or survey field number, shall be considered as a new service connection only.

No shifting of an existing service connection is permissible unless all arrears in the service connection are paid, if so demanded by the licensee.

(7)

Name transfer charge. - [(i)]

[Inserted by Commission's Notification No. TNERC/SC/7-4/dated 25.5.2007 (w.e.f. 13.6.2007).]

Every application for transfer of name consequent to the death of the consumer shall be in Form 1 [in Appendix to this Code]

[Inserted by Commission's Notification No. TNERC/SC/7-4/dated 25.5.2007 (w.e.f. 13.6.2007).]

accompanied by -

(a)

legal heirship certificate from the Tahsildar concerned or proof of ownership such as local body tax receipts (latest);

(b)

no objection certificate from other legal heirs, if any, (or) an indemnity bond in Form 3 in Appendix to this Code on non-judicial stamp paper for a value of Rs.80/- and a sworn-in affidavit and authenticated by a Notary Public or by a Gazetted Officer to show the status of other legal heirs;

(c)

fresh application with fee to be specified by the Commission and agreement form.

(ii)

□

[Inserted by Commission's Notification No. TNERC/SC/7-4/dated 25.5.2007 (w.e.f. 13.6.2007).]

Every application for transfer of name, in other cases, shall be in Forms 1 and 2 in Appendix to this Code accompanied by:

(a)

the document supporting the transfer with an undertaking in Form 4 in Appendix to this Code;

(b)

consent letter from the consumer for the transfer of the security deposit [if it is not included in the document supporting the transfer]

[Inserted by Commission's Notification No. TNERC/SC/7-4/ dated 25.5.2007 (w.e.f. 13.6.2007)]

. Where no such consent letter can be produced, the applicant shall pay fresh security deposit;

(c)

fresh application with fee to be specified by the Commission and agreement form.

Explanation-I. - The name transfer is effected only for such services which are not under disconnection.

(8)

Re-connection charge. - The licensee shall collect re-connection charge from LT/HT consumers at the rates specified by the Commission, from time to time.

(9)

Consumer meter card replacement charge. - The licensee shall collect charges at the rate specified by the Commission for replacement of consumer meter card, if lost or damaged. Wherever the space in the card is used up, the replacement shall be free of cost.

(10)

Dishonoured cheque service charge. - The licensee shall collect service charges as specified by the Commission, from time to time, from the consumer, when a cheque given by the consumer is returned by the Bank for any reason whatsoever.

(11)

Meter related charges. - Meter rental charges shall be payable by the consumer, unless the consumer elects to purchase a meter, in accordance with the rates as the Commission may fix:, from time to time, for different categories of consumers. The licensee shall, besides meter rent where payable, collect charges towards changing of meters and boards, testing of meters, testing of installations, inspection charges etc., at the rates specified by the Commission, from time to time.

(12)

[Application registration charge. - The Licensee shall collect application registration charges from the applicants for the following, at the rates specified by the Commission from time to time:

(a)

Application for new HT/LT services.

(b)

Application for addition/reduction of demand/load in respect of HT and LT services.

(c)

Application for temporary service.

(d)

Application for conversion of a service from L. T. to H. T. and vice versa

(e)

Application for shifting of HT/LT services.

(f)

Application for shifting of lines/structures/equipments under Deposit Contribution Works for LT/HT.

(g)

Application for change of tariff.

(h)

Application for replacement of defective meters.]

(13)

[Excess demand charge and excess energy charge during Restriction and Control of supply:

(i)

The maximum demand charges for HT supply shall be based on the actual recorded demand at the point of supply or at 90% of the demand quota as fixed from time to time through restriction and control measures whichever is higher. In case the maximum recorded demand is in excess of the quota fixed, the demand in excess of the quota fixed shall be charged at rates specified by the Commission from time to time.

(ii)

The energy consumption over and above the energy quota fixed shall be charged at the rates specified by the Commission from time to time in respect of such class of consumers upon whom the restriction and control measures apply.

(iii)

The services which draw electricity from TNEB Grid for using welding sets during the restricted hours shall be charged at the rates specified by the Commission from time to time.]

6.

Minimum charges.

- The consumer shall pay to the licensee [minimum charges]

[Substituted for the expression 'a minimum charge' by Commission's Notification No.TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 13.6.2007)]

in respect of every connection as detailed below. The minimum monthly charges are payable even when no electricity was consumed or supply disconnected by orders of Court or when the price of electricity supplied is less than the minimum charges.

(a)

For the H.T. services disconnected as per licensee's right to disconnect supply, the following monthly minimum charges based on the KVA demand shall be collected: -

(i)

If the disconnection is for the full month, then, 20% of the sanctioned demand.

(ii)

If the disconnection is for part of a month, the actual recorded demand or such percentage of sanctioned demand as declared by the Commission whichever is higher.

(b)

For the H.T services disconnected on the request of the consumer, the monthly minimum charges based on the KVA demand shall be the actual recorded demand (when the disconnection is for part of a month) or such percentage of sanctioned demand declared by the Commission whichever is higher:

Provided that where the licensee is prevented from supplying electricity owing to cyclone, floods, storms, fire, strike or lockout in the licensees' establishment or other occurrences beyond the control of the licensee, or if the licensee is satisfied that the consumer has been prevented from consuming electricity either in whole or in part for similar reasons, the licensee may recover from the consumer [minimum charges]

[Substituted for the expression 'a minimum charge' by Commission's Notification No.TNERC/SC/7-4 dated 25.5.2007 (w.e.f 13.6.2007)]

at twenty per cent of the billable demand or recorded demand whichever is higher besides charges for the actual consumption of electricity:

Provided further that where the consumer has been prevented from consuming electricity, -

(i)

the consumer shall produce a certificate from the Labour Officer to that effect, indicating the period of lockout or strike or temporary closure and the date on which it was called off;

(ii)

the consumer shall give prompt intimation of the commencement of the lockout or strike so that the maximum demand meter can be reset. In the case of temporary closure, the consumer shall give intimation of the closure. The consumer shall give intimation to the licensee immediately after lifting of the strike, lockout or temporary closure:

Provided also that, in the case of steel industries having more than one electric furnace in a HT service and when one or more electric furnaces are under total strike / closure, then, the benefit of billing on the actual recorded demand or the percentage as may be notified by the Commission, from time to time, of the sanctioned demand less the KVA load of the furnaces under total strike or closure whichever is higher shall be given. This provision is not applicable when there is lockout.

(c)

for the LT services disconnected as per the licensee's right to disconnect the supply or at the request of the consumer to disconnect supply, the monthly minimum charges shall be recovered by the licensee till the agreement is terminated.

7.

Installation of meter.

(1)

Sub-section (1) of section 55 the Act provides for the use of meters and reads as "No license supply electricity, after the expiry of two years from the appointed date, except through installation of a correct meter in accordance with the regulations to be made in this behalf by the Authority:

Provided that the licensee may require the consumer to give hie security for the price of a meter and enter into an agreement for the hire thereof, unless the consumer elects to purchase a meter:

Provided further that the State Commission may, by notification, extend the said period of two years for a class or classes of persons or for such area as may be specified in the notification".

(2)

[All new service connections shall be extended with meters only. For all new LT service connections, the Licensee shall

install meters with demand recording facility.]

[Substituted by Notification No. TNERC/SC/7-36 dated 01-07-2014.]

(3)

Unless the consumer elects to purchase his own meter, the licensee shall provide meter of high quality, high precision and accuracy and may require the consumer to give adequate security for the price of the meter and pay the hire charges therefor. Where the consumer elects to purchase his own meter, the licensee shall ensure that such meter is of high quality, high precision and accuracy and shall arrange to recalibrate the same at consumer cost.

(4)

The meter shall, ordinarily, be installed at the point of entry to the consumer's premises at a suitable and easily accessible place as the engineer may decide. After installation, the security seals shall be affixed in the presence of the consumer or his representative on the meter box cover, current transformer chamber, terminal cover of the meter, test block, cut outs, air-break switch and gate and such other part of the installation as the licensee may decide. The consumer shall be responsible to ensure that the meter and the seals are not stolen, damaged or tampered with. The consumer shall run his wiring from such point of supply.

(5)

The quantity of electricity recorded by such meter shall be taken as the quantity actually supplied by the licensee.

(6)

The licensee will provide the security seals in the meter box cover and the current transformer chamber after testing the meter. The seals on the terminal cover of meter (Low Tension and High Tension), test-block, metering set, meter box, cutouts, air-break switch and gate and other seals as desired by the licensee will be provided at site in the presence of the consumer or his representative, who shall satisfy himself that all the seals including the security seals are intact and the [meter]

[Substituted for 'meter disc' by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007, w.e.f. 13.6.2007.]

is functional. It is the responsibility of the consumer to ensure that the seals are not damaged or tampered with.

(7)

[All HT services shall be provided with HT metering. Wherever existing metering of the High Tension service connection is on the Low Tension side i.e. on the secondary side of the Transformer:

(i)

The average losses in the transformer shall be calculated as follows and added to the energy consumption indicated by the meter: -

| Average loss = $720 \times 1.0 \times C100$ | Units per month |

where C = KVA rating of the transformer

(ii)

The transformer loss arrived at by the above formula shall be added to the energy consumption, even when the recorded energy consumption is nil.

(iii)

1 % of the transformer capacity for transformer above 63 KVA will be added to the recorded maximum demand on the Low Tension side to arrive at the equivalent High Tension demand.]

(8)

At periodical intervals, the meters shall be recalibrated and \ standardised by means of standard instruments by the licensee. In respect of high tension service connections, however, such recalibration will be done in the presence of the consumer's electrical engineer or his representative, if the consumer so desires. If the meter is found defective/ incorrect, the adjustments in bills shall be made for error beyond permissible limits as laid down in the relevant rules made under the Act.

[The instrument transformers shall be tested for accuracy periodically as specified in the Central Electricity Authority (Installation and Operation of Meters) Regulations, 2006 and its amendment regulations.]

[Inserted by Notification No. TNERC/SC/7-36 dated 01-07-2014.]

(9)

If the consumer considers that the meter is defective, he may apply to the licensee to have a special test carried out on the meter at any time and the cost of such a test shall be borne by the licensee or the consumer accordingly as the meter is found defective or correct as a result of such a test. [The aforementioned special test for the disputed energy

meters including the suspected/defective meters shall be carried out in the Third Party testing laboratory accredited by National Accreditation Board for Testing and Calibration Laboratories (NABL) and till such time the Third Party Meter Testing Arrangement is established, the licensee shall have the special test conducted by the Chief Electrical Inspector to Government of Tamil Nadu]

[Inserted by Commission's Notification No.TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 13.6.2007).]

. The meter shall be deemed to be correct if the limits of error do not exceed those laid down in the relevant rules made under the Act. The consumer may also be allowed to install a check meter after recalibration by the licensee. Such check meter shall be of high quality, high precision and high accuracy and sealed by the licensee. Whenever the licensee's meter becomes defective, the check meter reading may be taken for billing.

(10)

The procedure to be followed for replacement of defective, damaged / burnt meter shall be as follows: -

(i)

It is the responsibility of the licensee to replace all defective meters [belonging to the licensee]

[Inserted by Commission's Notification No.TN ERC/SC/7-4 dated 25.5.2007 (w.e.f 13.6.2007).]

at his cost.

(ii)

Since the safe custody of the meter is the consumer's responsibility, replacement of meter due to damages shall be at the cost of consumer.

(iii)

The cost of replacement for burnt meters shall be met by the licensee unless it is proved otherwise that the burning out is due to the fault of the consumer.

(iv)

When the meter is owned by the consumer and becomes defective / damaged or when the meter is burnt due to the fault of the consumer, it is the responsibility of the consumer to replace the meter by a healthy one, if he elects to continue to have his own meter. Otherwise, the licensee shall replace the meter and enter into an agreement for hire and collect the specified deposits.

8.

Meter reading, billing and intervals.

- [(1) In the case of Low Tension service connections, the Licensee with the approval of the Commission shall decide the periodicity of meter readings, collection dates, modes etc. However, in the case of temporary supply, the meter reading shall be taken at the end of the period in case sanction is for less than a month and once in a month in case sanction is for a period more than a month. The Licensee shall have access to the consumer's premises at all reasonable hours for the purpose of such reading as per the provisions contained in section 163 of Act. The format of the meter cards containing all basic information to be made available to the consumer shall be got approved by the Commission. It is the responsibility of the Licensee to ensure that the details in the respective meter cards are entered without omission.]

[Substituted by Commission Notification No.TNERC/SC/7-22 dated 21.2.2011 (w.e.f. 23.3.2011).]

(2)

In the case of high tension service connections, the licensee shall, within four days after the expiry of each billing month, cause to be delivered to every consumer a bill of charges stating the amount payable by the consumer in connection with supply of electricity by the licensee.

[***]

[Omitted by Commission Notification No.TNERC/SC/7-22 dated 21.2.2011 (w.e.f. 23.3.2011).]

(4)

In case of LT services, the meter readings of last digit upto and inclusive of five units shall be rounded off to the lower multiple often units and the meter readings of last digit from six to nine units shall be rounded off to the higher multiple often units.

(5)

In case of LT services, after taking the meter readings, the particulars of meter readings, energy consumption and charges payable will be incorporated in the consumer meter card.

(6)

Payment for energy supplied shall be made by the consumer according to the meter readings referred to above and on

delivery of a bill therefor in the case of high tension consumers and incorporation of current consumption charges in the consumer meter card or assessment slip in the case of low tension consumers.

(7)

The total of current consumption charges and other miscellaneous charges etc. in a bill / assessment shall be rounded off to the nearest rupee.

(8)

In respect of high tension service connections, the employee of the licensee, in the presence of the consumer or his representative, will take the meter readings. The signature of the consumer or his representative will be taken in the meter card in token of being present at the time of taking the reading. If the consumer or his representative refuses to be present or refuses to sign in the meter card, the fact will be recorded. The meter readings and consumption will nevertheless be entered in the meter card.

(9)

In respect of captive generation, including windmill, the licensee shall ensure provision of a meter card to enter the generation and consumption details. The employee of the licensee, in the presence of the [representative of the generator/consumer]

[Substituted for 'consumer or his representative' by Commission's Notification Ni. TNERC/SC/7-4 dated 25.5.2007 (w.e.f.13.6.2007).]

, will take the meter readings. The signature of the) [representative of the generator/consumer]

[Substituted for the words 'consumer or his representative' by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f.13.6.2007).]

, will be taken in the meter card in token of being present at the time of taking the reading. If the [representative of the generator/consumer]

[Substituted for the words 'consumer or his representative' by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 13.6.2007)]

refuses to be present or refuses to sign in the meter card, the fact will be recorded. The meter readings and consumption will nevertheless be entered in the meter card.

9.

Meter readings when there is changes in sanctioned demand, etc.

(1)

Whenever there is change in the sanctioned demand, the change shall be effected, as far as possible, to coincide with the next meter reading. If, however, it is not possible so to do, the meter shall be reset and the maximum demand charges shall be billed proportionately for the respective periods.

(2)

Whenever a tariff change is to be effected in a service connection, such change shall be effected only after obtaining a Revised Test Report (RTR) and the reading taken shall be conclusive proof of the [electricity consigned till the change of tariff]

[Substituted for the expression 'electricity supplied' by Commission's Notification No. TNERC/SC/7-4 J dated 25.5.2007 (w.e.f. 13.6.2007).]

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10.

Inaccessibility of meter for reading.

(1)

When a low tension consumer leaves his installation connected to the licensee's mains but makes it inaccessible for reading by the employees of the licensee, the consumer shall, for the first occasion of such inaccessibility, be charged provisionally on the basis of the amount charged on the previous assessment. The employee of the licensee will leave an assessment slip in the premises, wherever possible.

(2)

[If, on the next occasion, the meter is accessible for reading, the consumer will be charged for the actual consumption less the amount already charged, subject to the minimum monthly charges for both the periods. If, on the other hand, the meter remains inaccessible on the second occasion also, the consumer will be served with a 48 hours notice to open his premises at a fixed time and date to enable an employee of the licensee to read the meter. In the said 48 hours

notice, the consumer shall be also be informed that the supply to his premises will be disconnected as per Section 163(3) of the Electricity Act, 2003. If the meter is now made accessible for reading, the consumer will be charged the actual consumption less the provisional amount charged and paid for the first period of inaccessibility subject to the minimum monthly charges for both the periods. If the meter remains inaccessible even after the 48 hours notice, the supply to the premises will be disconnected and for that period also provisional amount as in the case of previous occasion will be charged.]

[Substituted by Commissions Notification No.TNERC/SC/7-22 dated 21.2.2011 (w.e.f. 23.3.2011).]

(3)

If the meter is made accessible, subsequent to the disconnection, for purpose of reading the meter and settling accounts or for re-connection of the service, as the case may be, the consumer will be barged the actual consumption subject to the minimum monthly charges payable for both periods less the two provisional amounts levied and paid for the two periods of inaccessibility. Re-connection charges, if any, shall also be levied. Any excess amount collected will be adjusted in future current consumption charges.

(4)

[When a high tension consumer leaves his installation connected to the licensee's mains but makes the meter inaccessible for reading by the employees of the licensee, the employees of the licensee will serve the consumer with a 48 hours notice to open his premises for reading of the meter at a fixed time. If the meter is now made available for reading, the readings will be taken. In the said 48 hours notice, the consumer shall be also be informed that the supply to his premises will be disconnected as per Section 163(3) of the Electricity Act, 2003. If the meter remains inaccessible even after the 48 hours notice, the supply to the premises will be disconnected and the consumer will be charged provisionally on the basis of the amount charged for the previous month. If the meter is made accessible subsequent to the disconnection, the consumer will be charged the actual consumption less the provisional amount charged subject to minimum monthly charges. All re-connections shall attract re-connection charges over and above the other charges as are applicable.]

[Substituted by Commissions Notification No. TNERC/SC/7-22 dated 21.2.2011 (w.e.f. 23.3.2011).]

(5)

Serving of notices to the consumers with regard to the provisions under the sections above, can be executed by pasting the same at a conspicuous place at the premises.

11.

Assessment of billing in cases where there is no meter or meter is defective.

(1)

Where supply to the consumer is given without a meter or where the meter fixed is found defective or to have ceased to function and no theft of energy or violation is suspected, the quantity of electricity supplied during the period when the meter was not installed or the meter installed was defective, shall be assessed as mentioned hereunder.

(2)

The quantity of electricity supplied during the period in questions shall be determined by taking the average of the electricity supplied during the preceding four months in respect of both high tension service connections end low tension service connections, provided that the conditions in regard to use of electricity during the said four months were not different from those which prevailed during the period in question.

(3)

In respect of high tension service connections, where the meter fixed for measuring the maximum demand becomes defective, the maximum demand shall be assessed by computation on the basis of the average of the recorded demand during the previous four months.

(4)

Where the meter becomes defective immediately after the service connection is effected, the quantum of electricity supplied during the period in question is to be determined by taking the average of the electricity supplied during the succeeding four months period after installation of a correct meter, provided the conditions in regard to the use of electricity in respect of such low tension service connection are not different. The consumer shall be charged monthly minimum provisionally for defective period and after assessment the actual charges will be recovered after adjusting the amount collected provisionally.

(5)

If the conditions in regard to the use of electricity during the periods as mentioned above were different, assessment shall be made on the basis of any consecutive four months period during the preceding twelve months when the conditions of working were similar to those in the period covered by the billing.

(6)

Where it is not possible to select a set of four months, the quantity of electricity supplied will be assessed in the case of low tension service connections by the engineer in charge of the distribution and in the case of high tension service connections by the next higher level officer on the basis of the connected load and the hours of usage of electricity by the consumer.

(7)

In case the consumer does not agree with the assessment made by the engineer or the higher level officer, as the case may be the matter may be referred to the next higher level officer of the licensee. In case the consumer is still not satisfied, the consumer is at liberty to approach the respective Consumer Grievance Redressal Forum of the licensee.

12.

Errors in billing.

(1)

In the event of any clerical errors or mistakes in the amount levied, demanded or charged by the licensee, the licensee will have the right to demand an additional amount in case of undercharging and the consumer will have the right to get refund of the excess amount in the case of overcharging.

(2)

Where it is found that the consumer has been over-charged, the excess amount paid in such cases will be adjusted against future current consumption charges. If, even after such adjustment against future current consumption charges for two assessment periods, there is still a balance to be refunded, the refund will be made by cheque.

(3)

Wherever the licensee receive complaints from consumers that there is error in billing, etc., the licensee shall resolve such disputes regarding quantum of commercial transaction involved within the due date for payment, provided the complaint is lodged three days prior to the due date for payment. Such of those complaints received during the last three days period shall be resolved before the next billing along with refunds/adjustments, if any. However, the consumer shall not, on the plea of incorrectness of the charges, withhold any portion of the charges.

13.

Servicing of bills.

(1)

For the HT services, bills shall normally be sent by post or by hand delivery but the licensee takes no responsibility for loss in transit. The consumer should notify the concerned office of the licensee, if no bill or assessment is received. Non-receipt of the bills / assessments will not entitle the consumer to delay payment of the charges beyond the due date. For LT services, entry in consumer meter card shall be the bill of demand and there will be no separate issue of bill.

(2)

For any arrears other than the regular current consumption bill, it is the licensee's obligation to inform the consumer by a separate communication with details.

14.

Due dates and notice periods.

(1)

The licensee shall provide the following minimum days with regard to due dates, notice period for payment of tariff related electricity charges: -

(a)

For LT services, the due date shall be not less than 5 days from the date of entry in the consumer meter card. 15 days clear notice period shall be allowed prior to disconnection for non-payment. Belated payment surcharge shall not be levied for LT services during the notice period.

(b)

For HT services, the due date shall be not less than 7 days from the date of billing. If the last day of the due date happens to be a holiday, the due date shall be extended to till the next working day. 15 days clear notice period shall be

allowed prior to disconnection for non-payment. [In case the last day of the notice period happens to be a holiday, the period of notice will get extended and the last day for payment to avoid disconnection will be the next working day.]

[Inserted by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f.13.6.2007).]

Belated payment surcharge shall be levied for HT services during the notice period as specified in this Code.

(2)

In the case of low tension consumers who do not pay their current consumption charges as per the periods specified by the licensee in the consumer meter card, the printed notice period in the consumer meter card shall be construed as the notice to the consumer. Payments may also be accepted during the notice period. If the last day included in the notice period happens to be a holiday, the period of notice will get extended and the last day for payment to avoid disconnection will be the next working day.

(3)

Supply to such low tension consumers as specified above is liable to be disconnected after the expiry of the notice period.

(4)

Bills rendered to high tension consumers and the charges incorporated in the consumer meter cards of low tension consumers shall be paid as stipulated and are subject to BPSC, for delayed payment as stipulated in this Code.

(5)

If the amount of any bill remains unpaid beyond the period specified, the licensee may also, without prejudice to any of its rights under the agreement entered into by the consumer with the licensee, order supply of electricity to the consumer to be discontinued forthwith without further notice and keep the service connection disconnected until full payment for all obligations pending and the charge for the work of disconnection and re-connection has been paid. Such discontinuance of supply of electricity shall not relieve the consumer of his liability to pay the minimum monthly charges nor shall such discontinuance affect my right, claim, demand or power which may have accrued to the licensee hereunder.

15.

Mode of payment.

(1)

The licensee shall issue receipts for every recovery or payment from the consumers.

(2)

[All High Tension bills, including those on account of miscellaneous charges, shall be paid within the due date fixed by the Licensee from the date of the bill. The High Tension Consumer shall pay the bills in cash or by demand draft on local bank or cheque drawn on a bank at the headquarters of the designated authority of the distribution licensee or through electronic payment as stipulated by the distribution licensee. Payment for amounts Exceeding Rs.2,000/- (Rupees two thousand only) is preferred by DD/cheque. Depending on the circumstances, the designated authority of the distribution licensee shall, however, accept cash payments also and advise the consumer for future remittances by DD / cheque. In case the cheque is dishonored for any reason whatsoever, the high tension consumer will be required to pay the High Tension bills in cash or by demand draft thereafter. If the payment is not received within fifteen days (notice period) from the expiry of the due date allowed for payment, the supply will be disconnected. However, the consumer may be allowed extension of time to make payment beyond the expiry of the notice period allowed for payment, on an application made to the designated authority of the distribution licensee, subject to the levy of BPSC as specified in this Code.]

[Substituted by Commission Notification No. TNERC/SC/7-22 dated 21.2.2011 (w.e.f. 23.3.2011).]

(3)

[Low Tension Consumers shall pay the amount due in cash or by money order or by demand draft on local bank, or by Cheque dated on a bank situated in the place where the Distribution Section Office is located or through electronic payment or collection through bank's branch counters or post office etc. as stipulated by the distribution licensee. However, local bodies and Railways may issue Cheque on the banks situated in the place of their office and the Licensee may claim the collection charges, if any, from such consumers. Payment for amounts exceeding Rs.2000/- (Rupees two thousand only) is preferred by DD/ Cheque. Depending on the circumstances, the designated authority of the distribution licensee]

[Substituted by Commissions Notification No.TNERC/SC/7-22 dated 21.2.2011 (w.e.f. 23.3.2011).]

shall however accept cash payments also and advise the consumer for future remittances by DD / Cheque.

(4)

[In case the Cheque issued by a consumer is dishonored for any reason whatsoever, the Low Tension Consumer will be required to pay thereafter the amount due by cash/money order/demand draft only. Such consumers shall pay service charges for dishonor of cheque as stipulated by the Commission. The Licensee shall have the powers to accord approval for restoring the Cheque facility for payment by the consumers after watching the performance of the consumers in regard to settlement of current consumption charges at least for the last three consecutive billing periods in respect of LT consumers and three months period in respect of HT consumers. The Licensee shall have the powers for restoration of cheque payment facility upto the fourth occasion after watching the performance of the consumers in regard to subsequent settlement of charges. This concession of restoration of cheque payment facility shall not be given thereafter for a service connection. The consumers who request for restoration of cheque payment facility shall pay charges as follows:

(a)

Low Tension Consumers - Rs.300/-

(b)

High Tension Consumers - Rs.1000/-.]

16.

Option to pay charges in advance.

- The consumers who opt for depositing electricity charges in advance shall be permitted to do so. Such deposits shall be recorded in the consumer meter card.

17.

Agreement with respect to supply: Issues on recovery of charges.

(1)

Every consumer shall pay to the licensee, from the date of commencement of supply till the agreement is terminated, security deposit, minimum monthly charges, fixed charges, if any, and other charges as provided in the tariff orders, this Code and any other orders in this regard by the Commission, from time to time. However, any consumer, who has not availed of reconnection even after the expiry of termination of agreement period, the monthly minimum charges [shall be payable upto the date of termination of such agreement.]

[Substituted for the expression 'may be limited to the date of disconnection' by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 13.6.2007).]

(2)

Notwithstanding the termination of the agreement, the consumer shall be liable to pay the arrears of current consumption charges or any other sum due to the licensee on the date of disconnection and meter rent, if any, upto the date of termination of the agreement and Belated Payment Surcharge (BPSC) upto the date of payment.

(3)

The licensee may require the consumer, who, at any time during the currency of the agreement, intends to sell or otherwise dispose of or lease out in whole or in part of the premises or business to which supply is given or has been contracted for, to give three months' notice of his intention to the [designated authority of the distribution licensee]

[Substituted for the expression 'Engineer of the Licensee' as per Commission's Notification No.TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 13.6.2007).]

and clear all dues upto the date of sale / disposal / lease. In the case of such notice, the agreement in so far as the consumer is concerned, will cease to operate with effect from the date specified in such notice, but without prejudice to any claim or right which may have accrued to the parties thereunder.

(4)

If the consumer fails to give advance intimation as aforementioned of his intention to sell or lease out or otherwise dispose of the properties or business to which supply is given or contracted for, the licensee shall have the right to recover the charges for consumption and other charges due to the licensee under the agreement even beyond the date of sale or lease out or otherwise disposal of the properties or business.

(5)

If a service connection remains disconnected for a period of three months for non-payment of dues to the licensee, the licensee shall issue a notice requiring the consumer to get supply restored within three months from the date of receipt of such a notice and intimating him that failure to avail supply within that period will result in termination of the agreement. After the expiry of notice period of three months, the agreement shall stand terminated.

(6)

[***]

[Inserted by Commission's Notification No. TNERC/SC/7-3 dated 10.4.2007 (w.e.f 25.4.2007) later omitted by Commission's Notification No. TNERC/SC/7-12 dated 27.02.2009 (w.e.f. 1.4.2009).]

(7)

[The licensee shall on receipt of the notice referred to in sub - regulation (3) make such adjustment of the dues due to him from the consumer as may be necessary to clear the dues from the consumer against the security deposit or additional security deposit or any other deposit made by the consumer, and after making such adjustment, refund the balance deposit, if any, to the consumer within three months from the date of expiry of the notice period referred to in sub-regulation (3).]

[Inserted by Commission's Notification No. TNERC/SC/7-6 dated 3.12.2007 (w.e.f. 19.12.2007)]

(8)

[Where any consumer has more than one service connection, if he defaults in the payment of dues relating to any one of the service connections, the licensee may cause other service connections in the name of the consumer to be disconnected on issuing proper notice till all the arrears due for all the service connections are paid, notwithstanding the fact that the service connections are covered under separate agreements.]

[Inserted by Commissions Notification No. TNERC/SC/7-25 dated 18.3.2011]

In case of service connections in a premises, which have been disconnected / dismantled for defaults in payment of dues whatsoever and if such service connections are to be reconnected or new service connections are to be obtained by other persons in such premises either by purchase or transfer or lease basis, the Distribution Licensee shall reconnect such service connections or effect new service connections, as the case may be, in such premises only after payment of dues attributed to such premises by the applicant:

Provided that in case such premises have legally been sub-divided, the outstanding dues attributed to such premises shall be divided in proportion to the area covered by that sub-division. A new service connection to any of such sub-divided premises shall be given only after the share of outstanding dues attributed to such sub-divided premises, is duly paid by the applicant. The Distribution Licensee shall not refuse connection to an applicant of such sub-divided premises only on the ground that, dues attributed to the other portion(s) of such sub-divided premises have not been paid, nor shall the licensee demand record of last paid bills of such other portion(s) from such applicants.

(b)

The authorised officer of the licensee may permit such applicant to pay the outstanding dues in instalments and to avail the service on payment of 40% of the total arrears outstanding including BPSC in addition to the charges for reconnection of such service connections or effecting new service connections. The balance 60% of the outstanding dues shall be collected in 10 monthly instalments.

(c)

In case an intending buyer of a premises requests for the details of electricity charges due from the owner / occupier of the premises to the distribution licensee, the distribution licensee shall provide such details on payment of the charges as stipulated in the order of the Commission on non-tariff related miscellaneous charges for the time being in force.

18.

Consumer grievance Redressal.

- All grievances of the consumers, relating to the provisions under regulations (3) to (17) of this Code shall be referred by the consumer to the respective Consumer Grievance Redressal Forum [constituted under the Act]

[Inserted bit Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 13.6.2007).]

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19.

Unauthorised use of electricity - Investigation and enforcement provisions.

- Section 126 of the Act deals with the provisions for investigation and enforcement in cases of unauthorised use of electricity and reads as follows:

Assessment: (1) If on an inspection of any place or premises or after inspection of the equipments, gadgets, machines, devices found connected or used, or after inspection of records maintained by any person, the assessing officer comes to the conclusion that such person is indulging in unauthorised use of electricity, he shall provisionally assess to the best of his judgment the electricity charges payable by such person or by any other person benefited by such use.

(2)

The order of provisional assessment shall be served upon the person in occupation or possession or in charge of the place of premises in such manner as may be prescribed.

(3)

[The person, on whom an order has been served under sub-section (2), shall be entitled to file objections, if any, against the provisional assessment before the assessing officer, who shall, after affording a reasonable opportunity of hearing to such person, pass a final order of assessment within thirty days from the date of service of such order of provisional assessment of the electricity charges payable by such person] [[Substituted by Commission's Notification No. TNERC/SC/7-15 dated 09.10.2009 (w.e.f. 15.6.2007)

(3)

The person, on whom a notice has been served under sub-section (2), shall be entitled to file objections, if any, against the provisional assessment before the assessing officer, who may, after affording a reasonable opportunity of hearing to such person, pass a final order of assessment of the electricity charges payable by such person.]].

(4)

Any person served with the order of provisional assessment may, accept such assessment and deposit the assessed amount with the licensee within seven days of service of such provisional assessment order upon him:

[***] [[Omitted by Commission's Notification No. TNERC/SC/7-15 dated 09.10.2009 (w.e.f. 15.6.2007), before omission stood as under:

'Provided that in case the person deposits the assessed amount, he shall not be subjected to any further liability or any action by any authority whatsoever.]]

[(5) If the assessing officer reaches to the conclusion that unauthorized use of electricity has taken place, the assessment shall be made for the entire period during which such unauthorized use of electricity has taken place and if, however, the period during which such unauthorized use of electricity has taken place cannot be ascertained, such period shall be limited to a period of twelve months immediately preceding the date of inspection] [[Substituted by Commission's Notification No. TNERC./SC./7-15 dated 09.10.2009 (w.e.f. 15.6.2007) before substitution it was as under:

'(5) If the assessing officer reaches to the conclusion that unauthorized use of electricity has taken place, it shall be presumed that such unauthorized use of electricity was continuing for a period of three months immediately preceding the date of inspection in case of domestic and agricultural services and for a period of six months immediately preceding the date of inspection for all other categories of services, unless the onus is rebutted by the person, occupier or possessor of such premises or place.]].

(6)

The assessment under this section shall be made at a rate equal to [twice]

[Substituted for the expression 'one-and-half times' by Commission's Notification No. TNERC/SC/715 dated 09.10.2009 (w.e.f. 15.6.2007).]

the tariff applicable for the relevant category of services specified in sub-section (5).

Explanation. - For the purposes of this section:

(a)

"assessing officer" means an officer of a State Government or Board or licensee, as the case may be, designated as such by the State Government;

(b)

"unauthorised use of electricity" means the usage of electricity -

(i)

by any artificial means; or

(ii)

by a means not authorised by the concerned person or authority or licensee; or

(iii)

through a tampered meter; or

(iv)

[for the purpose other than for which the usage of electricity was authorised; or

[Substituted for the expression 'for the purpose other than for which the usage of electricity was authorised' by

Commission's Notification No. TNERC/SC/7-15 dated 09.10.2009 (w.e.f. 15.6.2007).]

(v)
for the premises or areas other than those for which the supply of electricity was authorised]
19A.

[Procedure for disconnection of supply of electricity and removal of the unauthorized usage of electricity.
[Inserted by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 01.09.2004).]

(1)
An assessing officer mentioned under section 126 of the Act, may either suo motu or on receipt of reliable information regarding unauthorized use of electricity in any premises conduct inspection of such premises.

(2)
The assessing officer shall prepare a report giving details such as connected load, condition of seals, working of meter and record any irregularity noticed/unauthorized use of electricity found.

(3)
The report referred to in sub-regulation (2) shall clearly indicate whether conclusive evidence substantiating the fact that unauthorized use of electricity was found or not. The details of such evidence should be recorded in the report.

(4)
In case of suspected unauthorised use of electricity, provisional assessment order shall be issued in the manner prescribed under the rules made by the State Government under section 126 (2) of the Act and final assessment order shall be issued by the assessment officer by following the procedure stipulated in section 126 of the Act. In respect of a tariff where different rates are adopted based on the slabs of consumption, the highest tariff rate specified in the tariff structure for the relevant category of service may be adopted.

(5)
If the person does not deposit the assessed amount with the licensee concerned as stipulated under sub-section (4) of section 126 of the Act, the licensee concerned may proceed to recover such assessed amount and take such further action as is permitted under the Act.

(6)
The enforcement provisions of the Act and the procedures given in this code shall be followed to recover the assessed amount from the person. In case of default in payment of the assessed amount, including default in payment of any of the installment permitted by the licensee concerned and agreed by the person, the licensee concerned may, after giving a fifteen days' notice in writing disconnect the supply of electricity.

(7)
The person shall remove the cause of unauthorized use immediately after its detection and give a written intimation to the licensee concerned. The licensee concerned shall check the claim of the person about the removal of the cause of unauthorized use of electricity, verified to his satisfaction. Failure of the person to remove the cause of unauthorized use shall result in levy of charges on account of unauthorized use of electricity till the cause of such unauthorised use of electricity is removed and verified and recorded by the licensee concerned or the onus of allegation of unauthorized use of electricity is rebutted by the person and accepted by the licensee concerned.]

[Substituted by Notification No. TNERC/SC/7-36 dated 01-07-2014.]

20.
Appeal under section 127(1) of the Act.

(1)
Every appeal petition made to the Appellate Authority prescribed under section 127(1) of the Act shall be in Form 6 and shall be accompanied by a demand draft for an amount of Rs.100/- (Rupees one hundred only).

(2)
Verification of the Appeal Petition. -

(a)
Every appeal petition referred to above shall be verified by an affidavit and every such affidavit shall be in Form 7.

(b)
Every affidavit shall be drawn up in the first person and shall state the full name, age, occupation and address of the deponent and the capacity in which he is signing and shall be signed and sworn before a person lawfully authorised to take and receive affidavits.

(c)

Every affidavit shall clearly and separately indicate statements, which are true to the (i) belief of the deponent, (ii) knowledge of the deponent, and (iii) information received by the deponent.

(d)

Where any statement in the affidavit is stated to be true to the information received by the deponent, the affidavit shall also disclose the source of the information and a statement that the deponent believes that information to be true.

(3)

After an appellate authority passes orders on an appeal and when the appellant defaults in making payment of the assessed amount, he, in addition to the assessed amount, shall be liable to pay, on expiry of thirty days from the date of order, an amount of interest at the rate of sixteen per cent per annum, compounded every six months.

Chapter 3

Disconnection and Restoration of Electric Supply

21.

Disconnection of supply.

- Section 56 of the Act with regard to disconnection of supply in default of payment reads as follows:

"(1) Where any person neglects to pay any charge for electricity or any sum other than a charge for electricity due from him to a licensee or the generating company in respect of supply, transmission or distribution or wheeling of electricity to him, the licensee or the generating company may, after giving not less than fifteen clear days notice in writing, to such person and without prejudice to his rights to recover such charge or other sum by suit, cut off the supply of electricity and for that purpose cut or disconnect any electric supply line or other works being the property of such licensee or the generating company through which electricity may have been supplied, transmitted, distributed or wheeled and may discontinue the supply until such charge or other sum, together with any expenses incurred by him in cutting off and re-connecting the supply, are paid, but no longer:

Provided that the supply of electricity shall not be cut off if such person deposits, under protest, -

(a)

an amount equal to the sum claimed from him, or

(b)

the electricity charges due from him for each calculated on the basis of average charge for electricity paid during the preceding six months, whichever is less, pending disposal of any dispute between him licensee.

(2)

Notwithstanding anything contained in any other law for the time being in force, no sum due from any consumer, under this section shall be recoverable after the period of two years from the date such sum became first due unless such sum has been shown continuous as recoverable as arrears of charges for electricity supplied and the licensee shall not cut off the supply of the electricity."

The provision of the Act as in sub-section (1) above are in addition to and not in derogation of any other law for the time being in force Accordingly, the licensee shall be entitled to disconnect the supply of electricity subject to the provisions of Water (Prevention and Control of Pollution) Act, 1974, Air (Prevention and Control of Pollution) Act 1981 and Environment (Protection) Act, 1986, etc.

22.

Restoration of supply of electricity.

(1)

The licensee shall restore the supply to the service immediately and in any case not exceeding twelve hours [in the case of urban areas and twenty four hours in the case of rural areas]

[Inserted by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 13.6.2007).]

on recovery of electricity charges or such other sums together with any expenses incurred by the licensees in cutting off and re-connecting the supply.

(2)

In the case of a service connection remaining disconnected for six months or more, the consumer's installation will be tested, revised test report obtained and the testing charges collected from the consumer before the same is restored [Such revised test report shall be signed by the consumer or legal owner or legal occupant of the premises]

[Inserted by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 13.6.2007).]

(3)

To restore supply to a high tension service connection which remains disconnected for one year or more, approval of the competent authority with regard to safety and security of the installation shall be obtained.

(4)

In the case of service connections, which have been disconnected, the licensee shall have the power to allow instalment payments of all arrears in deserving cases.

(5)

The licensee shall restore the disconnected service before issue of termination of agreement notice and also during the notice period for termination of agreement on recovery of total arrears due till the date of restoration.

(6)

[(i) When a service connection remains disconnected for non payment of electricity charges beyond the notice period of three months, if the consumer comes forward within the period mentioned below to pay the actual dues and agrees to remit the charges in clause (ii) below, the official authorized by the Licensee may grant extension of time beyond the notice period and revoke the termination of agreement provided that the lines feeding the service connection have not been dismantled, so as to facilitate reconnection of the disconnected service.

Category

Period for reconnection of disconnected service

HT consumers

Within five years from the date of Disconnection

LT Agricultural consumers

-do-

Other LT consumers

Within two years from the date of Disconnection

(ii)

In accordance with sub-regulation (4), the authorized Officer of the Licensee may permit such consumer to pay the outstanding in instalments and to avail reconnection on receipt of 40% of the total arrears outstanding after closing of account due to the licensee, which include:

(a)

Arrears on the date of disconnection

(b)

Tariff minimum and meter rent for the period of six months from the date of disconnection (including the notice period)

(c)

The applicable BPSC / interest upto the date of payment.

(d)

The balance 60% of the amount shall be collected in ten monthly instalments.

(e)

In addition to the above, the full amount of Security Deposit adjusted while closing of account shall be collected in one lumpsum before effecting new service connection.]

[Explanation. - For the purpose of removal of doubts, it is hereby declared that any tariff minimum collected by the Tamil Nadu Electricity Board prior to the date of publication of the Tamil Nadu Electricity Supply (Amendment) Code, 2006 in the Tamil Nadu Government Gazette, that is to say prior to 21st June 2006 on the basis of sub-regulation (6) as it stood before the said amendment need not be refunded by the Tamil Nadu Electricity Board.]

[Inserted by Commission's Notification No. TNERC/SC/7-2(I) dated 20.9.2006 (w.e.f. 1.09.2004).]

(7)

If the consumers of disconnected services come forward for re-connection after 5 years in case of H.T. services and two years in case of LT services from the date of disconnection, the licensee shall treat them as new applicants and supply effected after recovering all charges applicable to a new service connection and all other arrears with BPSC.

(8)

The facility of payment in instalments will be made available to fee consumer on request. To avail of this facility, the consumer shall execute an undertaking in Form 5 in the Appendix to this Code.

Chapter 4

Tampering, Distress or Damage to Electrical Plant, Meters, Etc.

23.

The Act deals elaborately under sections 135 to 141 regarding the tampering, distress, etc. Hence in this Code, for the sake of completeness and to provide consolidated information to the consumers on electric supply, the relevant provisions of the Act as well as procedure for assessment of the electricity charges, disconnection of supply of electricity and removing the meter, electric line, electric plant and other apparatus in case of theft of electricity and measures to prevent diversion of electricity, theft or unauthorized use of electricity or tampering, distress or damage to electrical plant, electric lines or meter are set out below.

(A)

Tampering of meters and theft of electricity. - Section 135 of the Act, which deals with theft of electricity, reads as follows: -

(1)

[Section 135 of the Act, which deals with theft of electricity, reads as follows:

[Substituted by Commission's Notification No. TNERC./SC/7-15 dated 09.10.2009 (w.e.f. 15.06.2007).]

(1)

Whoever, dishonestly, -

(a)

taps, makes or causes to be made any connection with overhead, underground or under water lines or cables, or service wires, or service facilities of a Licensee supplier as the case may be; or

(b)

tampers a meter, installs or uses a tampered meter, current reversing transformer, loop connection or any other device or method which interferes with accurate or proper registration, calibration or metering of electric current or otherwise results in a manner whereby electricity is stolen or wasted; or

(c)

damages or destroys an electric meter, apparatus, equipment, or wire or causes or allows any of them to be so damaged or destroyed as to interfere with the proper or accurate metering of electricity.

(d)

uses electricity through a tampered meter or

(e)

uses electricity for the purpose other than for which the usage of electricity was authorised, so as to abstract or consume or use electricity shall be punishable with imprisonment for a term which may extend to three years or with fine or with both;

Provided that in a case where the load abstracted, consumed, or used or attempted abstraction or attempted consumption or attempted use -

(i)

does not exceed 10 kilowatt, the fine imposed on first conviction shall not be less than three times the financial gain on account of such theft of electricity and in the event of second or subsequent conviction the fine imposed shall not be less than six times the financial gain on

(ii)

exceeds 10 kilowatt, the fine imposed on first conviction shall not be less than three times the financial gain on account of such theft of electricity and in the event of second or subsequent conviction, the sentence shall be imprisonment for a term not less than six months, but which may extend to five years and with fine not less than six times the financial gain on account of such theft of electricity:

Provided further that in the event of second and subsequent conviction of a person where the load abstracted, consumed, or used or attempted abstraction or attempted consumption or attempted use exceeds 10 kilowatt, such person shall also be debarred from getting any supply of electricity for a period which shall not be less than three months but may extend to two years and shall also be debarred from getting supply of electricity for that period from any other source or generating station:

Provided also that if it is proved that any artificial means or means not authorized by the Board or Licensee or supplier, as the case may be exist for the abstraction, consumption or use of electricity by the consumer, it shall be presumed,

until the contrary is proved, that any abstraction, consumption or use of electricity has been dishonestly caused by such consumer.

(1A)

Without prejudice to the provisions of this Act, the licensee or supplier, as the case may be, may, upon detection of such theft of electricity, immediately disconnect the supply of electricity:

Provided that only such officer of the licensee or supplier, as authorised for the purpose by the Appropriate Commission or any other officer of the licensee or supplier, as the case may be, of the rank higher than the rank so authorised shall disconnect the supply line of electricity:

Provided further that such officer of the licensee or supplier, as the case may be, shall lodge a complaint in writing relating to the Commission of such offence in police station having jurisdiction within twenty four hours from the time of such disconnection:

Provided also that the licensee or supplier, as the case may be, on deposit or payment of the assessed amount or electricity charges in accordance with the provisions of this Act, shall, without prejudice to the obligation to lodge the complaint as referred to in the second proviso to this clause, restore the supply line of electricity within forty-eight hours of such deposit or payment]

[Substituted by Commission's Notification No TNERC/SC/7-2 dated 19/05/2006 (w.e.f 1.09.2004).]

[Substituted by Notification No. TNERC/SC/7-36 dated 01-07-2014.]

, before substitution stood as under:

(1) Whoever, dishonestly,-

(a) taps, makes or causes to be made any connection with overhead, underground or under water lines or cables, or service wires, or service facilities of a licensee; or

(b) tampers a meter, installs or uses a tampered meter, current reversing transformer, loop connection or any other device or method which interferes with accurate or proper registration, calibration or metering of electric current or other wise results in a manner whereby electricity is stolen or wasted; or

(c) damages or destroys m x electric meter, apparatus, equipment, or wire or causes or allows any of them to be so damaged or destroyed as to interfere with the proper or accurate metering of electricity, so as to abstract or consume or use electricity shall be punishable with imprisonment for a term which may extend to years or with fine or with both:

Provided that in a case where the load abstracted, consumed, or used or attempted abstraction or attempted consumption or attempted use -

(i) does not exceed 10 kilowatt, the fine imposed on first conviction shall not be less than three times the financial gain on account of such theft of electricity and in the event of second or subsequent conviction the fine imposed shall not be less than six times the financial gain on account of such theft of electricity.

(ii) exceeds 10 kilowatt, the fine imposed on first conviction shall not be less than three times the financial gain on account of such theft of electricity and in the event of second or subsequent conviction, the sentence shall be imprisonment for a term not less than six months but which may extend to five years and with fine not less than six times the financial gain on account of such theft of electricity:

Provided further that if it is proved that any artificial means or means not authorised by the Board or Licensee exist for the abstraction, consumption or use of electricity by the consumer, it shall be presumed, until the contrary is proved, that any abstraction, consumption or use of electricity has been dishonestly caused by such consumer."

(2)

[Any officer of the licensee or supplier as the case may be]

[Substituted by Commission's Notification No. TNERC/SC/7-15 dated 09.10.2009 (w.e.f. 15.06.2007).]

authorise in His behalf by the State Government may -

(a)

enter, inspect, break open and search any place or premises in which he has reason to believe that electricity has been or is being used unauthorisedly;

(b)

search, seize and remove all such devices, instruments, wires and any other facilitator or article which has been or is being used for unauthorised use of electricity;

(c)

examine or seize any books of account or documents which % his opinion shall be useful for or relevant to, any

proceedings in respect of the offence under sub-section (1) and allow the person from whose custody such books of account or documents are seized to make copies hereof or take extracts therefrom in his presence.

(3)

The occupant of the place of search or any person on his behalf shall remain present during the search and a list of all things seized in the course of such search shall be prepared and delivered to such occupant or person who shall sign the list:

Provided that no inspection, search and seizure of any domestic places or domestic premises shall be carried out between sunset and sunrise except in the presence of an adult male member occupying such premises.

(4)

The provisions of the Code of Criminal Procedure, 1973 (2 of 074), relating to search and seizure shall apply, as far as may be, to searches and seizure under this Act."

Explanation. - For the purposes of the above section on tampering of meters and theft of electricity, if the premises in question is occupied by an authorised tenant through an agreement with the respective consumer, the responsibility shall rest with the authorised tenant only.

[(AA) The Procedure for assessment of the electricity charges, disconnection of supply of electricity and removing the meter, electric line, electric plant and other apparatus in case of theft of electricity as detailed in section 135 of the Act is given below:

(1)

The officer authorized under sub-section (2) of section 135 of the Act (hereinafter referred to as the authorized officer), may either suo motu or on receipt of reliable information regarding theft of electricity in any premises, conduct inspection of such place or premises (The provisions of the Code of Criminal Procedure, 1973, relating to search and seizure shall apply, as far as may be, to searches and seizure under this Act.).

(2)

(a)

The authorized officer shall prepare a report at the place or premises giving details such as connected load, condition of seals, working of meter and record, modus operandi adopted for theft of energy. Any damage or destruction to the electric meter, metering equipments, apparatus, line, cable or electrical plant of the Licensee or supplier concerned, caused or allowed to be caused by the accused person so as to interfere with the proper or accurate metering of electricity or for theft of electricity shall also be duly recorded in the report indicating whether conclusive evidence substantiating the fact that theft of energy was found or not. The authorized officer may also take photo or prepare a diagram illustrating the arrangements found to have been made for theft of electricity, wherever feasible and such photo or diagram shall form a part of inspection report. Upon detection of such theft of electricity, the officer of the licensee or supplier, as the case may be, as authorized for the purpose by the Commission, may, immediately disconnect the supply line of electricity and a complaint shall be lodged in the police station as per the procedure stipulated in section 135 (1 A) of the Act on the basis of the materials collected by the Assessment officer who has conducted the inspection. The supply to the premises shall be restored only after satisfying the stipulation of the third proviso of section 135 (1A) of the Act.

(b)

To carry out all or any of the above acts specified in sub-section (1A) of section 135 of the Act, the Commission authorises the same officers of the Licensee or the supplier as authorised by the Government of Tamil Nadu to do all or any of the acts specified in clauses (a) to (c) of sub-section (2) of section 135 of the Act.

(3)

In case of suspected theft by tampering of meter or metering equipment, meter connection security seal or by replacing original seal by bogus seal, the meter shall be removed and sealed and a separate report shall be prepared on the condition of the meter and metering equipment removed and sealed. At the time of sealing, signatures of the accused person and also of the officers of licensee or supplier concerned, as the case may be, and any other witness shall be obtained on this report. This report shall also form a part of the inspection report. The supply shall be restored only through a meter tested in an accredited test laboratory and metering equipment of appropriate rating subject to satisfying the condition as specified in sub-regulation (2). In such cases, the licensee or supplier concerned, as the case maybe, shall also verify the connected load at the premises and record details of equipment found in the premises, in the inspection report.

(4)

In cases where the theft of electricity by by-passing the meter or metering equipment is detected and the electrical load, fully or partially, or the accused person's connection is found connected directly with the lines, Cables or electrical plant, electric supply to such premises shall be disconnected forthwith as stipulated in sub-regulation (2) and shall be restored only after the cause of theft is removed to the satisfaction of the licensee or supplier concerned, as the case may be, and subject to satisfying the condition as stipulated in sub-regulation(2).

(5)

In cases of theft by direct tapping from the licensee's or supplier's lines, cables or electrical plant of the licensee or supplier, if the accused person unauthorizedly connects or reconnects any meter of the licensee or supplier in a disconnected service, then electric supply to such premises or place shall be disconnected forthwith as stipulated in sub-regulation (2). The licensee or supplier concerned, as the case may be, may subsequently remove or divert or convert his line, cable or electrical plant to prevent further theft of electricity provided that such action shall not result in any inconvenience in affording quality supply or disruption of supply, to other consumers.

(6)

The authorized officer and any other officer of the licensee or supplier concerned, as the case may be, who accompanied the authorized officer shall sign the inspection report in all the above cases and obtain signatures of the accused person or his representative and the same must be handed over to the accused person or his representative at site immediately under proper receipt. In case of refusal by the accused person either to sign or accept or give a receipt, a copy of inspection report must be pasted at a conspicuous place in or outside the premises and a note recorded on the office copy of the inspection report to the effect that the copy of the report has been pasted at the conspicuous place of the premises. A copy of the report shall be subsequently sent to the accused person of the premises under registered post within three days of inspection.

(7)

Where it is established that there is a case of theft of energy, the authorized officer shall assess the quantum of energy consumption for the past twelve months as per the assessment formula given in Form 8 in Appendix to this code and prepare provisional assessment order for the charges for such consumption at two times of the tariff applicable (i.e the applicable tariff for the purpose for which the pilfered energy was used) and serve on the accused person under proper receipt. The authorized officer may reduce the period for such billing if it is established by the facts or documents submitted in the representation of the accused person or any such other evidence observed by the authorized officer. Wherever electronic meters are installed and the load curves are studied periodically, the period of theft could be limited to the exact period as could be determined scientifically. The authorized officer shall record reasons for such reduction in the period of billing, in the assessment order. The energy consumption arrived at as per the formula referred to in the said Form 8 will be charged excluding the energy consumption recorded by the meter as per the rates specified by the Commission's Tariff Order.

(8)

Within five days of inspection, the authorized officer shall serve on the accused person, provisional assessment order in the Form 9 in Appendix to this code for the charges for the theft of electricity based on the evidence recorded during the course of inspection. The order should clearly state the time, date and place at which the reply has to be submitted and the designation/address of the officer to whom it should be addressed. The accused person shall be required to submit his representation within seven days of issue of the provisional assessment order.

(9)

In case of suspected theft through a tampered meter, such tampered meter taken out and sealed at the time of inspection, as prescribed in sub regulation (3), shall be sent to the third party accredited meter testing laboratory as arranged by the licensee or supplier concerned, as the case may be, or to the Chief Electrical Inspector to the State Government till such time the third party meter testing arrangement is established by the licensee or supplier concerned, as the case may be. The accused person shall be given a notice of seven working days for witnessing the test of such meter at such meter testing laboratory. The notice shall clearly indicate the time, date and place wherein the suspected tampered meter shall be tested and the accused person shall be allowed to witness the test. The accused person shall duly sign the test results report after witnessing it. If such accused person does not turn up at the meter testing laboratory on the appointed date and time indicated in the notice to witness the test or refuses to sign the test results, the licensee or supplier concerned, as the case may be, shall carryout the test in the absence of such accused person

and shall send a copy of results to the accused person through registered post within three days of the date of testing.

(10)

In cases where the meter has been tested at such meter testing laboratory and where it is established that there is a case of theft of energy, the procedure for assessment as specified in sub regulation (7) shall be followed.

(11)

In case the accused person does not respond to the provisional order within seven working days, the licensee or supplier concerned, as the case may be, may proceed to initiate the recovery against the provisional assessment order.

(12)

Within seven working days from the date of submission of such accused person's reply, if made within the seven working days from the date of receipt of provisional assessment order, the authorized officer shall arrange a personal hearing with such accused person. For this purpose the authorized officer shall serve a three days notice to such accused person to allow him for a personal hearing and shall also allow any additional submission of new facts or documents if any, during the course of hearing by such accused person. If such accused person does not respond to the notice in the matter, the authorized officer shall proceed to issue the final assessment order, as per the procedure specified herein after.

(13)

Before the personal hearing, the authorized officer before whom personal hearing shall be conducted, shall analyze the case after carefully considering all the documents, submissions by the accused person, facts on record and the consumption pattern, whatever available.

(14)

The authorized officer shall also compute the quantum of energy consumption for the past twelve months. The Assessment Officer may study the energy consumption pattern of the Service Connection concerned for the past one year or more. If necessary, it may also be compared with the load/production pattern or output of the service connection. In case of suspected theft, if consumption pattern is commensurate with the assessed consumption or in case of the decision that the case of suspected theft is not established, no further proceedings shall be taken and the decision shall be communicated to the accused person under proper receipt within three working days and the supply to the premises shall be restored forthwith.

(15)

Considering the facts submitted by the accused person, the authorised officer shall issue, within seven working days from the date of enquiry, a final assessment order in Form 10 in Appendix to this code. If the accused person does not respond to the personal hearing, the authorised officer shall issue a final assessment order within fifteen days from the issuance of provisional assessment order. This speaking order shall contain a brief of inspection report, submissions made by accused person in his written reply as well as during his personal hearing and reasons for acceptance or rejection of the same and the assessment charges as per sub-regulation (12). In the final assessment order, charges, if any, paid by the accused person during the period for which the assessment is done shall be duly credited, if warranted, to avoid duplication of billing for such period.

(16)

The final assessment amount and the last date should be clearly stated in the speaking order. A copy of the speaking order shall be handed over to the accused person under proper receipt on the same day.

(17)

The accused person shall be required to make the payment within seven working days of receipt of final assessment order. On deposit or payment of the assessed amount or electricity charges by the accused person, supply to the premises shall be restored as referred to in the third proviso of section 135 (1A) of the Act.

(18)

In case of default in payment of the assessed amount, the licensee or supplier concerned, as the case may be, shall, after giving a fifteen days' notice in writing, remove meter and service line and also electrical plant for giving supply to this connection. However if the accused person makes payment within notice period, surcharge applicable to that category shall also be payable as prescribed in this code.

(19)

In case where the theft of electricity in the premises which does not have regular electricity connection, has been detected and the licensee or supplier concerned, as the case may be, shall forthwith disconnect the supply to such

premises. In such premises supply shall be given only after the accused person has cleared the dues to be paid on account of charges assessed for theft of electricity in full including surcharge if any and has availed a regular new connection after completing the required formalities.

(20)

If the accused person does not make payment, the licensee or supplier concerned, as the case may be, may proceed to recover its dues against such order and take such further action as is permitted under the Act.

(21)

If no person is available to whom the provisional or final assessment order can be served with reasonable diligence or if any person refuses to accept or avoids to receive such order, it shall be affixed at the inspected premises in the presence of two witnesses and in such case an endorsement to the effect shall be made in the copy of such order. An assessment order so affixed shall be deemed to have been duly served to the person or occupier of the premises.

(22)

In case of compounding the notice as in Form 11 in Appendix to this code may be issued and the amount collected as per section 152 of the Act.

Explanation. - For the purpose of this regulation and regulation 23-BB:

(a)

"accused person" shall mean and include the owner or occupier of the premises or his authorized agent or representative or any other person who is in occupation or possession or in charge of the premises at the relevant time of detection of theft of electricity or any other person who has been benefited by the theft of electricity.

(b)

"authorised officer", shall in case if he is not an officer of the licensee or supplier, as the case maybe, mean and include an officer designated or appointed as an authorised officer by the State Government for the purpose of dealing with theft of electricity as provided in the Act, including the assessment of theft of energy empowered under this code.

(c)

"licensee or supplier" means and includes the licensee or supplier, as the case may be or his franchisee or his authorized agent or representative who alleges the occurrence of theft of electricity.]

(B)

Theft of electric lines and materials. - Section 136 of the Act, which deals with theft of electric lines and materials, reads as follows: -

"(1) Whoever, dishonestly. -

(a)

cuts or removes or takes away or transfers any electric line, material or meter from a tower, pole, any other installation or place of installation or any other place, or site where it may be rightfully or lawfully stored, deposited, kept, stocked, situated or located, including during transportation, without the consent of the licensee or the owner, as the case may be, whether or not the act is done for profit or gain; or

(b)

stores, possesses or otherwise keeps in his premises, custody or control, any electric line, material or meter without the consent of the owner, whether or not the act is committed for profit or gain; or

(c)

loads, carries, or moves from one place to another any electric line, material or meter without the consent of its owner, whether or not the act is done for profit or gain, is said to have committed offence of theft of electric lines and materials, and shall be punishable with imprisonment for a term which may extend to three years fine or with both.

(2)

If a person, having been convicted of an offence punishable under sub-section (1) is again guilty of an offence punishable under this sub-section, he shall be punishable for the second or subsequent for a term of imprisonment which shall not be less than six months but which may extend to five years and shall also be liable to fine which shall not be less than ten thousand rupees."

(BB)

[The measures to prevent diversion of electricity, theft or unauthorized use of electricity or tampering, distress or damage to electrical plant, electric lines or meter are detailed below:

(1)

The licensee shall arrange for routine testing and certification of different meters as stipulated in the Central Electricity Authority (Installation and Operation of Meters) Regulations 2006 and in any other directions issued by the Commission.

(2)

The licensee shall arrange to provide pilfer proof meter boxes and meters with anti tampering features as stipulated in the regulations made by Authority under the Act on Installation and Operation of Meters in all industrial new connections and at least in 10% existing industrial connections every year. This maybe extended to other categories whose load / demand, is more than 18.6 KW.

(3)

All new Industrial, HT and EHT metering systems shall be immune to external influences like magnetic induction, vibration, electrostatic discharge, switching Transients, Surge Voltages, oblique suspension, harmonics or any other factor. This may be extended to other categories whose existing contracted load/demand is more than 18.6 KW.

(4)

The licensee shall arrange for regular and surprise inspection of premises by their officers to ensure prevention of theft or unauthorized use of electricity or tampering, distress or damage to electrical plant, electric lines or meter. At least 5% of total connections should be inspected annually and the provisions contained in sections 126 and 135 (2) shall be effectively implemented.

(5)

Priority shall be given to detection of theft of electricity cases by the licensee, particularly in theft prone areas.

(6)

The licensee shall evolve a system and put in place within three months for carrying out regular monthly monitoring of consumption of high value consumer, which shall include all the HT connections and LT connections having contract demand of 18.6 KW and above. Variations in the consumption shall be carefully analyzed. The licensee shall arrange prompt inspection in doubtful cases.

(7)

The licensee shall endeavour to install remote metering devices on all HT connections on priority, and may be implemented over a period of time after analysing cost economics, for the purpose of monitoring of consumption and prevention of theft of electricity. The licensee shall further endeavour to install remote metering devices on high value LT connections.

(8)

The licensee shall arrange to give due publicity through the media, TV, newspaper and by displaying in boards at consumer service related offices of the licensee to bring awareness regarding the level of commercial losses due to theft or unauthorized use of electricity, its implication on the honest consumers and seek the cooperation of the consumers for prevention of theft or unauthorized use of electricity or tampering, distress or damage to electrical plant, electric lines or meter. The licensee shall also display boards containing the information on the above at its consumer service related offices.

(9)

The licensee shall arrange to display feeder wise losses, efforts made for prevention of diversion of electricity, theft or unauthorized use of electricity or tampering, distress or damage to electrical plant, electric lines or meter and results obtained during the year, on its website.

(10)

The licensee shall arrange to provide requisite security staff to the inspecting officers for their safety and expenses on such account shall be a pass through in the Annual Revenue Requirement of the licensee. Such security staff shall invariably accompany the inspecting officers in order to ensure safety of the inspecting officer.

(11)

The licensee shall arrange to install meter on distribution transformers of the suspected area where the possibilities of theft of electricity exists and shall monitor the consumption of such meters with the consumption of individual consumer meters connected to the distribution transformer. The licensee shall carryout intensive inspection in areas, if the difference in consumption of the distribution transformers meter and individual consumer meters connected to the distribution transformer is abnormal.

(12)

The licensee may provide HV distribution system in theft prone areas using small capacity distribution transformer,

wherever necessary, to prevent theft by direct hooking.

(13)

The licensee is authorized to relocate the meters of existing consumers to an appropriate location so that it is outside the premises but within the boundary wall and easily accessible for reading, inspection/ testing and other related works.

(14)

The licensee shall ensure that meter readers are rotated in such a manner that their area of meter reading is changed at least once in a year.]

(C)

Punishment for receiving stolen property. - Section 138 of the Act, which deals with punishment for receiving stolen property reads as follows:-

"Whoever dishonestly receives any stolen electric line or material knowing or having reasons to believe the same to be stolen property, shall be punishable with imprisonment of either description for a term which may extend to three years or with fine or with both."

(D)

Interference with meters or works of licensee. - Section 138 of the Act, which deals with interference with meters or works of licensee reads as follows:-

"(1) Whoever, -

(a)

unauthorisedly connects any meter, indicator or apparatus with any electric line through which electricity is supplied by a licensee or disconnects the same from any such electric line; or

(b)

unauthorisedly re-connects any meter, indicator or apparatus with any electric line or other works being the property of a licensee when the said electric line or other works has or have been cut or disconnected; or

(c)

lays or causes to be laid, or connects up any works for the purpose of communicating with any other works belonging to a licensee; or

(d)

maliciously injures any meter, indicator, or apparatus belonging to a licensee or willfully or fraudulently alters the index of any such meter, indicator or apparatus or prevents any such meter, indicator or apparatus from duly registering, shall be punishable with imprisonment for a term which may extend to three years, or with fine which may extend to ten thousand rupees, or with both, and, in the case of a continuing offence, with a daily fine which may extend to five hundred rupees; and if it is proved that any means exist for making such connection as is referred to in clause (a) or such re-connection as is referred to in clause (b), or such communication as is referred to in clause (c), for causing such alteration or prevention as is referred to in clause (d), and that the meter, indicator or apparatus is under the custody or control of the consumer, whether it is his property or not, it shall be presumed, until the contrary is proved, that such connection, re-connection, communication, alteration, prevention or improper use, as the case may be, has been knowingly and willfully caused by such consumer."

(E)

Negligently breaking or damaging works. - Section 139 of the Act, which deals with negligent usage, reads as follows:

"Whoever, negligently breaks, injures, throws down or damages any material connected with the supply of electricity, shall be punishable with fine which may extend to ten thousand rupees."

(F)

Penalty for intentionally injuring works. - Section 140 of the Act, which deals with the penalty for maliciously wasting electricity or injuring works, reads as follows:-

"Whoever, with intent to cut off the supply of electricity, cuts or injures, or attempts to cut or injure, any electric supply line or works, shall be punishable with fine which may extend to ten thousand rupees."

(G)

Extinguishing public lamps. - Section 141 of the Act, which deals with penalty for extinguishing public lamps, reads as follows:-

"Whoever, maliciously extinguishes any public lamp shall be punishable with fine which may extend to two thousand rupees."

24.

Compounding of offences.

- Section 152 of the Act which deals with compounding of offences reads as:

(1)

Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), the Appropriate Government or any officer authorized by it in this behalf may accept from any consumer or person who committed or who is reasonably suspected of having committed an offence of theft of electricity punishable under this Act, a sum of money by way of compounding of the offence as specified in the Table below:

Nature of Service.

Rate at which the sum of money for compounding to be collected per Kilowatt (KW) /Horse Power (PIP) or part thereof for Low Tension (LT) supply and per Kilo Volt Ampere (KVA) of contracted demand for High Tension (HT).

(1)

(2)

1. Industrial Service

twenty thousand rupees;

2. Commercial Service

ten thousand rupees;

3. Agricultural Service

two thousand rupees;

4. Other Services

four thousand rupees:

Provided that the Appropriate Government may, by notification in the Official Gazette, amend the rates specified in the Table above.

(2)

On payment of the sum of money in accordance with sub-section (1), any person in custody in connection with that offence shall be set at liberty and no proceedings shall be instituted or continued against such consumer or person in any Criminal Court.

(3)

The acceptance of the sum of money for compounding an offence in accordance with sub-section (1) by the Appropriate Government or an officer empowered in this behalf shall be deemed to amount to an acquittal within the meaning of section 300 of the Code of Criminal Procedure, 1973 (2 of 1974).

(4)

The compounding of an offence under sub-section (1) shall be allowed only once for any person or consumer.

25.

Power for licensee to enter premises and to remove fittings or other apparatus of licensee.

- Section 163 of the Act provides the powers for licensee to enter premises and reads as:

"(1) A licensee or any person duly authorised by a licensee may, at any reasonable time, and on informing the occupier of his intention, enter any premises to which electricity is, or has been, supplied by him, of any premises or land, under, over, along, across, in or upon which the electric supply-lines or other works have been lawfully placed by him for the purpose of:

(a)

inspecting, testing, repairing or altering the electric supply-lines, meters, fittings, works and apparatus for the supply of electricity belonging to the licensee; or

(b)

ascertaining the amount of electricity supplied or the electrical quantity contained in the supply; or

(c)

removing where a supply of electricity is no longer required, or where the licensee is authorised to take away and cut off such supply, any electric supply-lines, meters, fittings, works or apparatus belonging to the licensee.

(2)

A licensee or any person authorised as aforesaid may also, in pursuance of a special order in this behalf made by an Executive

Magistrate and after giving not less than twenty-four hours notice in writing to the occupier, -

(a)
enter any premises or land referred to in sub-section (1) for any of the purposes mentioned therein;

(b)
enter any premises to which electricity is to be supplied by him, for the purpose of examining and testing the electric wires, fittings, works and apparatus for the use of electricity belonging to the consumer.

(3)
Where a consumer refuses to allow a licensee or any person authorised as aforesaid to enter his premises or land in pursuance of the provisions of sub-section (1) or, sub-section (2), when such licensee or person has so entered, refuses to allow him to perform any act which he is authorised by those sub-sections to perform, or fails to give reasonable facilities for such entry or performance, the licensee may, after the expiry of twenty-four hours from the service of a notice in writing on the consumer, cut off the supply to the consumer for so long as such refusal or failure continues; but for no longer."

26.

Code to be read along with Distribution Code, Electricity Act, 2003 and amendments, etc.,

(1)
As this Code is intended to deal with the working relations between the licensee and the consumer, this Code shall be read along with the Distribution Code, the State Grid Code and other relevant provisions of the Act, rules and regulations made thereunder pertaining to supply and consumption of electricity.

(2)
Where any of the provisions of this Code is found to be inconsistent with those of the Act, rules or regulations made thereunder, notwithstanding such inconsistency, the remaining provisions of this Code shall remain operative.

(3)
Where any dispute arises as to the application or interpretation of any provision of this Code, it shall be referred to the Commission whose decision shall be final and binding on the parties concerned.

(4)
Wherever extracts of the Electricity Act, 2003 are reproduced, any changes / amendments to the original Act shall automatically be deemed to be effective under this Code also.

Chapter 5

Code Review Panel

27.

Appointment of Code Review Panel.

(1)
The Commission may appoint a Code Review Panel (hereafter in this Chapter referred to as "Panel") consisting of -

(a)
A Chairperson at the level of Director of the Distribution Licensee.

(b)
A Member Secretary, who shall be the Chief Engineer/Commercial of the Distribution Licensee.

(c)
One Member from the SLDC who is not below the rank of Chief Engineer.

(d)
Three representatives from the Distribution Licensee who are not below the rank of Chief Engineer and one representative from the Distribution Licensee who is not below the rank of Chief Financial Controller.

(e)
One representative from LT domestic consumer sector, one from LT commercial sector, one from LT industry sector and one from LT agricultural consumer sector.

(f)
One member representing the EHT / HT consumers.

(g)

One member representing open access consumers.

(2)

The Member Secretary shall arrange for the Panel meeting. The tenure of the members mentioned under clauses (e), (f) and (g) of sub-regulation (1) shall be three years. The members, on expiry of their term are not eligible for re-nomination.

(3)

The functions of the panel are:

(a)

to review the working of various provisions of this Code, [***]

[The words 'the State Grid Code' omitted by Commission's Notification No.TNERC./SC/7-4 dated 25.5.2007 (w.e.f.13.6.2007).]

and the Distribution Code;

(b)

to consider the suggestions received from the licensees, consumers and other interested persons;

(c)

to consider and offer its views on any specific matter as may be referred to it by the Commission.

(4)

Manner of reviewing the Code. - (i) Any licensee, consumer or other interested persons desiring any change in this Code shall send the proposal in writing to the panel specifying the reasons for such change and setting out the attendant circumstances. For this purpose, the licensee may hold meetings with the consumer or group of consumers if it is considered that the Code may require changes to meet the individual requirements of the consumer or group of consumers.

(ii)

The panel shall, upon receipt of such proposal or where the Commission has made a reference, forward the same to the STU for its consideration and written comments.

(iii)

The panel shall convene a meeting of its members to consider the comments of the STU, and if necessary at its discretion, invite and hear the person who made the suggestions for change and other interested persons and also the local authorities and tele-communication companies.

(iv)

The panel may, in considering the suggestion and the comments of the STU thereon, set up sub-committees to study the related issues.

(v)

The panel after finalising its views on the modifications to the Code, forward the same to the Commission:

Provided that the panel may supplement its own procedure in addition to the procedure laid down herein for conducting its meetings and in carrying out its functions.

(5)

The Commission may approve the changes with or without modification as it may deem fit and cause the publication of the same in such manner as may be necessary.

[Appendix]

[Inserted by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 13.6.2007).]

Form 1

[Refer to regulation 5(7)]

To

The Designated Engineer,

I,(S/o)/(D/o)/(W/o).....aged..... Years, am residing at (Full Address & Phone No.)
.....

The premises bearing Door No..... Name of Street
.....Village/Town..... Taluk with Service Connection No..... Tariff
.....Distribution in the name of.....S/o.is in my possession.

(1)

The xerox copy of the sale deed in my favour for the said premises is enclosed, or

The property tax receipt for the above property is given in my name and xerox copy of the same duly attested by Gazetted Officer is enclosed, or

Metro Water/Sewerage connection is given in my name and the xerox copy of the same duly attested by Gazetted Officer is enclosed, or

Legal heirship certificate from the Tahsildar concerned.

(2)

Application and Agreement Form.

(3)

Indemnity Bond on Rs.80/-Non-judicial stamp paper (Applicable in the case of name transfer due to legal succession).

I undertake to pay amounts outstanding against the Account No.....which are found to be due at a later date.

I request that the name of Service No.....may kindly be changed to my name.

Place:

Signature of transferee.

Date:

Full Address:

Form 2

Name Transfer Forms

[Refer to regulation 5 (7)]

(To be used as a consent letter from transferor in case of sale, etc.)

To

The Designated Engineer/

Address of the Licensee Engineer

I (S/o D/o W/o).....owner of premises bearing Door No (Name of the street.....Place.....) hereby give my consent for the transfer of service bearing A/c. No..... standing in my name / in the name, of.....to Thiru / TmtS/o. D/o W/o.....since I had sold my house to him / her.....

The transfer may be effected with available deposit / subject to the condition that the transferee pays the security deposit and other charges*.

Place:

Signature of transferee.

Date:

Full Address:

* Strike out the portion not required.

Form 3

[Refer to regulation 5(7)]

Indemnity Bond

Sub: Electricity - Distribution - Transfer of security deposit and service connection - premises No.....A/c. No.....

I son of/ daughter of /wife of Thiru./ Tmtdo hereby declare that Thiru / Tmt..... owner of the above premises has expired on..... and I am the legal heir to the deceased, I desire to have the security deposit and service connection transferred in my name. I agree to indemnify the licensee against any losses, damages, etc., arising consequent on any disputes by reason of the security deposit and service connections being transferred to me as the legal heir to the property of late Thiru /Tmt.....

The licensee shall have the right to proceed against me not only in respect of movable and immovable properties belonging to me but also against me personally in regard to all liabilities past, present and future claims relating to this service connection. The above facts are certified to be correct.

Signature of the consumer.

Signed before me

Notary Public / Gazetted Officer

Station:

Date:

Form 4

[Refer to regulation 5(7)]

Undertaking

Whereas I/We.....S/o. D/o. W/o (a firm under the name and style of)..... hereinafter called consumer, have approached the..... (Name of licensee) hereinafter referred to as licensee for transfer of A/c No.for supply at.....in my / our name and whereas the licensee after perusal of documents produced by me / us has agreed to effect transfer of account, as sought for by the consumer, this undertaking witness the following:

The consumer shall pay on demand and without demand all dues to the licensee including such dues as may become payable as a result of revision of bills relating to the period prior to the transfer of account in his / her / their name. The commitment to pay the demands relating to the period prior to the transfer of account will include such demands omitted to be made periodically and such omission has been detected after the service has been transferred in the name of the consumer.

2. The Consumer agrees that the licensee shall have the right to enforce disconnection of supply in the event of consumer failing to fulfill the obligation of this undertaking.

3. The consumer further agrees to indemnify the licensee against any loss/damage or any other liability, the licensee may suffer as a result of any dispute or disputes raised by the consumer himself / herself/ themselves or by any other party with regard to this transfer of account at any time.

Signature.

Witness With Address

1.

2.

Form 5

[Refer to regulation 22(8)]

Undertaking For Payment of Dues In Instalments.

Undertaking to be furnished by a consumer who seeks to avail the facility of paying his dues in installments.

From

.....

To

The Designated Engineer,

Distribution Licensee Name and address

Undertaking

Sir,

In consideration of my / our paying the amounts in instalments towards.....I, for and on behalf of.....undertake -

(i)

to pay the total dues of Rs.....(Rupees.....) in monthly instalments subject to levy of belated payment surcharge in case of default to pay the instalment on the dates specified below:

First instalment Rs.....payable on or before.....

Second instalment Rs.....payable on or before.....

Third instalment Rs.....payable on or before.....

payable on or before and so on.

(ii)

to adhere strictly to the schedule of instalments and also to pay before the due dates the monthly / bi-monthly current consumption charges failing which the supply may be disconnected without further notice and the re-connection may be effected only on settlement of the entire (including balance instalment) dues with belated payment surcharge for the instalments not paid on the due date.

Signature.

(Seal of the Company)

In presence of- Witness (Name and Address)

(1)

(2)

Form 6

[Refer to regulation 20]

Form of Appeal to the Prescribed Appellate Authority Under Section 127 (1) of the Act.

(1)

Appeal No.....of.....

(2)

Name and address of the appellant:

(3)

Designation and address of the Assessing.

Officer passing the order

(4)

Date of communication of the order appealed against to the appellant

(5)

Address to which notices may be sent to the appellant

(6)

Amount ordered to be paid

(7)

Whether the [half]

[Substituted for the expression 'one third' by Commission's Notification No. TNERC/SC/7-15 dated 09.10.2009 (w.e.f. 15.06.2007).]

of the assessed amount as required under section 127 (2) of the Act is deposited (Documentary proof of the deposit shall be furnished)

(8)

Statement of facts (here state the facts briefly)

(9)

Grounds of appeal

(Here set out the grounds on which the appeal is made by the appellant)

(10)

Whether the appellant wishes to be heard in person or through an advocate or authorised representative (In case if the appellant wishes to be represented by his authorised representative or by an advocate then a letter of authority authorising the authorised representative to represent on his behalf or as the case may be a vakalat authorising the advocate to represent his case shall be furnished.)

(11)

Relief prayed for

Signature of the authorised representative, if any.

Signature of the appellant.

Form 7

Affidavit In Support

(Refer to regulation 20)

Before The Appellate Authority Under Section 127(1) of The Act.

Appeal No.....

(To be filled by the Office of the Appellate Authority)

Name and address of the appellant

..... Appellant

Designation and address of the Assessing Officer

.....Respondent

Affidavit of verification by the appellant in support of the Appeal Petition filed by him. -

I,.....son of.....aged.....residing at do solemnly affirm and say as follows:

1. I am the appellant / authorised representative of the appellant in the Appeal Petition filed by me against the orders of the Assessing Officer referred to above as the respondent in my Appeal Petition and as such I am competent to verify the facts set out in my Appeal Petition.

2. I solemnly affirm at.....on this day of..... that.....

(i)

the contents of the above appeal petition are true to my knowledge and I believe that no part of it is false and no material has been concealed therefrom;

(ii)

the statement made in paragraphs.....of the appeal petition herein now shown to me and marked with the letter 'A' are true to my knowledge; and

(iii)

the statements made in paragraphs marked with the letter 'B' are based on information received fromand I believe them to be true.

Identified before me by

Signature of the Appellant

List of Abbreviations

1. DD - Demand Draft.

2. HP - Horse Power

3. ISI - Indian Standards Institute

4. KVA - Kilo Volt Ampere

5. KW-Kilo Watt

6. SLDC - State Load Despatch Centre

[Form 8]

[Inserted by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 15.6.2007).]

[See Regulation 23 (AA) (7)]

Formula To Assess The Quantum of Energy In Case of Theft of Electricity

The following factors are to be considered to arrive at a formula for the assessment of quantum of energy in case of theft of electricity.

(i)

Nature of Service

(ii)

Connected load / Contracted demand

(iii)

Load factor

(iv)

Nature of feeder (Rural / Urban / Industrial) and supply restrictions in the feeder

(iv)

Per day usage hours for which assessment has to be made.

The authorized officer may take into account the following and arrive at the least period (duration) of theft:

i. for the period of twelve months

ii. for the period from the date of prior inspection if any by the Enforcement or meter testing wing to the date of detection

iii. from the date of service connection to the date of detection

iv. wherever electronic meters are installed and the load curves are studied periodically the period of theft could be limited to the exact period as could be determined scientifically.

v. Based on the document produced by the accused person.

vi. For any other reasonable period as assessed by the authorized officer to the best of his judgment

$|U| = L \times LF \times H \times DDF|$

Where

U = Quantum of energy Assessed in Units

L = Load / demand in KW

LF = Load factor

H = Number of hours the load is considered to be used in a day.

D = Duration of assessment in days

DF = Diversity Factor

The following tables give the Load Factor, and the Number of hours per day usage for different categories of usage of the pilfered Energy.

Table-A

Usage Categories of pilfered energy

Diversity Factor

Load Factor

Number of hours per day

Domestic (without Air conditioning load) and

Huts

1

30%

12

Domestic (with Air conditioning load)

1 March to September

70%

12

Other months .

30%

12

Industrial including cottage industries

1

80%

As per Table-B

Power looms etc Public lighting and water supply

1

100%

8

Agricultural

1

100%

10

All other categories

1.1

90%

12

Table B

Category

Number of hours per day

1

Fed by High Tension rural feeders having only 14

hours of supply per day:-

i. Day Shift only

6

ii. Night Shift only

8

iii. Both day and night shifts

14

2

Fed by High Tension feeders having 24 hours of supply:-

i. Day shift only

8

ii. 2 Shifts

16

iii. 3 Shifts

24

i. The term "Usage Categories" given in Table - A refers to the purpose for which the suspected pilfered energy is used. For example if the pilfered energy in a hut service connection is used for domestic purpose, the assessment shall be made under "domestic category", if it is used for commercial purpose, it shall be assessed under "all other categories" as mentioned in the above Table - A.

ii (a) For High Tension Service connections, the maximum demand shall be assessed as 75% of the total connected load at the time of inspection subject to a minimum of the contracted demand. A power factor of 0.90 lag may be used for conversion of KVA or KW.

(b)

Assessment of demand charges: -

Twice the appropriate H.T. tariff rate for maximum demand.

[Form 9]

[Substituted by Commission's Notification No. TNERC/SC/7-5 dated 23.8.2007 (w.e.f. 15.06.2007).]

[See Regulation 23 (AA) (8)]

Provisional Assessment Order For Theft of Energy Under Section 135/138 of The Electricity Act, 2003

From(The Authorised Officer),

ToFull address of the person inwhose name the service connectionstands (or) occupier (or) enjoyer, etc.)

Letter.....,dated.....

Sir,

Sub: Theft of energy - Detected in SC No Provisional Assessment Order-Reg.

Ref: Inspection Report dated

1.0

On.....(the day, month, year of inspection) at...(time) hours the service connection in SC No located at Door No, in SF No (Full address of the service connection) which is/was in the name of Thiru /Thirumathy.....was inspected by me in the presence of you/your representative Thiru/Thirumathy.....

2.0

During the inspection it was found that an offence of theft of energy has been comitted.....(describe actual mode of theft with details of artificial means found in the service/unauthorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the licensee.

The above said illegal abstraction, consumption and use of energy is punishable under section 135 of the Electricity Act 2003.

3.0

The approximate loss caused by you due to dishonest abstraction/illegal restoration of supply is assessed at Rs (Rupees.....) in accordance with the regulations of the Tamil Nadu Electricity Supply Code, and a working sheet is enclosed herewith.

4.0

The assessment amount as referred to above shall be paid within 7 working days from the date of receipt of this order.

5.0

If you are desirous of filing objections, if any, against the provisional assessment, you may send your explanation to the address of the undersigned with sufficient proof, within seven days from the date of receipt of this order. You may also choose to appear in person or through an authorised representative with relevant documents for an enquiry before the undersigned.

6.0

You are requested to acknowledge the receipt of this order immediately.

Yours faithfully, Authorised Officer.....

Encl : Copies of

1. Report
2. Statement Recorded (if any)
3. Mahazar

Copy submitted to:.....

Copy to

He is instructed to arrange to serve this order to the accused person with dated acknowledgement and send the acknowledgement to this office.

[Form 10]

[Substituted by Commission's Notification No. TNERC/SC/7-5 dated 23.8.2007 (w.e.f. 15.06.2007).]

[See Regulation 23 (AA) (15)]

Final Assessment Order For Theft Of Energy Under Section 135 Of The Electricity Act, 2003

From(The Authorised Officer),Letter No.....dated.....

To(Full address of the person in whose name the service connection stands (or) occupier(or) enjoyer, etc.)

Sir,

Sub: Theft of energy - Detected in SC No Final Assessment

Order -Reg.

Ref: 1. Provisional Assessment Order.....

2. Your reply

1.0

On.....(the day, month, year of inspection) at.....(time) hours the service connection in SC No located at Door No in SF No. (Full address of the service connection) which is/was in the name of Thiru/Thirumathy was inspected by me in the presence of you/your representative Thiru/Thirumathy.....

2.0

During the inspection it was found that an offence of theft of energy has been committed.....(describe the actual mode of theft with details of artificial means found in the service/unauthorized reconnection of a disconnected service connection).

By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the licensee. The above said illegal abstraction, consumption and use of energy is punishable under section 135 of the Electricity Act 2003.

3.0

A provisional assessment was issued to you in the reference cited and you were allowed to file your objections and to appear for a hearing as per the Tamil Nadu Electricity Supply Code.

4.0

On a detailed examination and on consideration of your explanation offered, facts and records furnished in your letter / during the personal hearing, it is found that the theft of electricity has been committed by you as described below: -

(A reasoned/detailed order to be passed by the Officer concerned taking into consideration the theft of electricity noticed, explanation and the findings. Reference to be made to the materials in support of the claim of the licensee about the existence of theft, the involvement or the role of the consumer with reference to the said theft of energy, submissions made by accused person in his written reply as well as during his personal hearing and reasons for acceptance or rejection of the same).

5.0

The loss caused by you due to dishonest* abstraction/*illegal restoration of supply is assessed at Rs (Rupees.....) in accordance with the regulations of the Tamil Nadu Electricity Supply Code, and a working sheet is enclosed herewith. The assessment amount referred to above shall be paid within seven working days from the date of receipt of this order.

You are requested to acknowledge the receipt of this order immediately.

Yours faithfully, Authorised Officer.....

Encl: Copies of

1. Report
2. Statement Recorded (if any)
3. Mahazar
4. Provisional Assessment Order.

Copy submitted to:

He is instructed to arrange to serve the order to the accused person with dated acknowledgement and send the same to this office.

* Strike out whichever is not applicable.

FORM 11

[See Regulation 23(AA) (22)]

Compounding of Offence Under Section 152 of The Electricity Act, 2003.

From(The Authorised Officer),Letter No.....dated....

To(Full address of the person inwhose name the service connectionstands (or) occupier (or) enjoyer, etc)

Sir,

Sub: Theft of energy - Detected in SC No Order on Compounding

Amount - Reg.

1.0

On.....(the day, month, year of inspection) at (time) hours the service connection in SC No located at Door No..... in SF No.....(Full address of the service connection) which is/was in the name of Thiru / Thirumathy.....was inspected by me in the presence of you/your representative.....Thiru/Thirumathy.....

2.0

*During the inspection it was found that an offence of theft of energy has been committed.....
(describe the actual mode of theft with details of artificial means found in the service/ unauthorized reconnection of a disconnected service connection). By committing the said offence, you have dishonestly abstracted, consumed and used energy with the intention to defraud the licensee.

3.0

The above said illegal abstraction, consumption and use of energy is punishable under section 135 of the Electricity Act 2003.

4.0

As you have opted for compounding of offence under section 152 of the Electricity Act, 2003, you are requested to pay Rs.....(Rupees) towards the compounding of the offence as mentioned above.

Yours faithfully,Authorized officer

Encl: Working sheet.

Copy to:

[Inserted by Commission's Notification No. TNERC/SC/7-4 dated 25.5.2007 (w.e.f. 1.09.2004).]

[Substituted by Commission's Notification No TNERC/SC/7-5 dated 23.8.2007 (w.e.f. 15.06.2007).]

[Inserted by Commission's Notification No TNERC/SC/7-11 dated15.12.2008 (w.e.f. 28.11.2008) (Gazette publication dated 28.01.2009).]

[Substituted by Notification No. TNERC/SC/7-36 dated 01-07-2014.]

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Translation